

Table of Statutes referred to in this Act

3RD SCH.
—cont.

Short Title	Session and Chapter
Customs Consolidation Act, 1876	39 & 40 Vict. c. 36.
Interpretation Act, 1889	52 & 53 Vict. c. 63.
Merchant Shipping Act, 1894	57 & 58 Vict. c. 60.
Merchant Shipping (Mercantile Marine Fund) Act, 1898	61 & 62 Vict. c. 44.
Merchant Shipping Act, 1906	6 Edw. 7. c. 48.
Maritime Conventions Act, 1911	1 & 2 Geo. 5. c. 57.
Merchant Shipping (Wireless Telegraphy) Act, 1919	9 & 10 Geo. 5. c. 38.
Fees (Increase) Act, 1923	13 & 14 Geo. 5. c. 4.
Statute of Westminster, 1931	22 & 23 Geo. 5. c. 4.
Merchant Shipping (Safety and Load Line Conventions) Act, 1932	22 & 23 Geo. 5. c. 9.

CHAPTER 44

Superannuation Act, 1949

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An Act to amend the law relating to the superannuation and other benefits payable to and in respect of persons who serve or have served in the civil service of the State or in service to which the Superannuation (Various Services) Act, 1938, applies or are existing Irish officers within the meaning of the Government of Ireland Act, 1920 ; to authorise the payment of annual allowances and gratuities to and in respect of persons who are injured or contract diseases while employed in a civil capacity for the purposes of His Majesty's Government in the United Kingdom ; and for purposes connected with the matters aforesaid.

[14th July 1949.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PENSIONS TO WIDOWS, CHILDREN, ETC.

Pensions under Part I

Power to grant
widows' and
children's
pensions.

1. Subject to the provisions of this Act, the Treasury may, on the death of a male person to whom this Part of this Act applies (hereafter in this Part of this Act referred to as "the deceased"), grant, in respect of his service—

- (a) where he leaves a widow, a pension to that widow (hereafter in this Part of this Act referred to as a "widow's pension"); and
- (b) where he had a wife at any time after this Part of this Act first applied to him (whether or not the marriage continued until his death and whether or not a widow's pension is or can be granted), a pension for the benefit of the children of the marriage, and, in certain circumstances, of other children of his or hers (hereafter in this Part of this Act referred to as a "children's pension"):

Provided that any marriage of the deceased which takes place after he has ceased to be a civil servant shall be left out of account for the purposes of this Part of this Act, and any reference in this Part of this Act to a marriage, a wife, the widow or the children of the deceased shall be construed accordingly.

Pensions under
Part I to
depend on
deceased's
superannua-
tion allowance.

2.—(1) A pension shall not be granted under this Part of this Act unless—

- (a) the deceased had become eligible for the grant of a superannuation allowance (whether such an allowance had actually been granted or not); or

(b) the deceased was still serving as a civil servant at the time of his death and would, if he had then retired upon a medical certificate, have been eligible for the grant of a superannuation allowance ; or

PART I
—cont.

(c) the deceased had ceased to be a civil servant in such circumstances that, on attaining a particular age, he would or might have become eligible for a superannuation allowance by virtue of subsection (2) of section thirty-four of this Act (which relates to superannuation benefit in certain cases of premature retirement).

(2) In this Part of this Act, the expression “ the rate of the superannuation allowance of the deceased ” means the annual rate of the superannuation allowance mentioned in subsection (1) of this section for which the deceased had become eligible (whether such an allowance at that or any other rate had actually been granted or not), or, as the case may be, for which he would or might have become eligible, any abatements falling to be made under regulations made under subsection (4) of section sixty-nine of the National Insurance Act, 1946, being left out of account.

3.—(1) A widow's pension shall not be granted if—

Widows'
pensions.

(a) the widow was at the time of the death cohabiting with a person other than the deceased ; or

(b) after the death the widow remarries or cohabits with any person,

and if, after the grant of a widow's pension, the widow remarries or cohabits with any person, the pension shall cease as from the date of the remarriage or the commencement of the cohabitation :

Provided that where—

(i) a pension is withheld or ceases under this section ; and

(ii) the Treasury are satisfied at a subsequent date that the marriage or cohabitation has come to an end or that there are compassionate grounds for the payment of pension notwithstanding the marriage,

the Treasury may, if they think fit, grant or regrant the pension as from that date.

(2) Subject to the provisions of subsection (1) of this section, a widow's pension may be paid in respect of the whole period from the death of the deceased to the death of the widow.

(3) The annual rate of a widow's pension may amount to one-third of the rate of the superannuation allowance of the deceased or to twenty-six pounds per annum, whichever is the higher.

PART I
—cont.
Children's
pensions :
beneficiaries.

4.—(1) A children's pension may be granted if, and be paid so long as and whenever, there are persons for whose benefit it can enure.

(2) Subject to the provisions of this section and to the provisions of the First Schedule to this Act, the persons for whose benefit a children's pension can enure are the children of the deceased or of any wife of his who are for the time being in their period of childhood and full-time education.

(3) A children's pension cannot enure—

(a) for the benefit of any person conceived after the deceased ceased to be a civil servant ;

(b) for the benefit of any person by reason that he is the illegitimate or adopted child of the deceased, if he was born, or, as the case may be, adopted, after the termination of the deceased's last marriage or after the deceased had ceased to be a civil servant ; or

(c) for the benefit of any person by reason that he is the child of a wife of the deceased, if he was born or became her child after the termination of the marriage or after the deceased had ceased to be a civil servant.

(4) A children's pension cannot enure for the benefit of any person by reason that—

(a) he is the illegitimate child of the deceased ; or

(b) he is a stepchild of the deceased and a child of a wife of his ; or

(c) he is the stepchild, adopted child or illegitimate child of a wife of the deceased,

unless he was wholly or mainly dependent on the deceased at the time of his death.

(5) A children's pension cannot enure for the benefit of a female person who at the time of the death of the deceased was married or was cohabiting with any person, and if, after the death of the deceased, a female person marries or cohabits with any person, she shall thereupon cease to be a person for whose benefit a children's pension can enure :

Provided that where—

(a) a pension is withheld from or does not enure for the benefit of a person by virtue of this subsection ; and

(b) the Treasury are satisfied at a subsequent date that the marriage or cohabitation has come to an end or that there are compassionate grounds for permitting the pension to enure for her benefit notwithstanding the marriage,

the Treasury may, if they think fit, grant the pension, or, as the case may be, permit the pension to enure for her benefit, as from that date.

(6) A children's pension cannot enure for the benefit of a person who is the subject of a nomination made by the deceased under Part II of this Act which is still in force.

PART I
—cont.

5.—(1) Only one children's pension shall be granted in respect of the service of any one person, but

Children's
pensions:
rate and
mode of
payment.

- (a) the rate thereof may vary according to the number of persons for whose benefit it can for the time being enure ; and
- (b) it shall be paid to such person or persons as the Treasury may from time to time direct, and different parts thereof may be directed to be paid to different persons ; and
- (c) the person to whom all or any part thereof is paid shall apply the sum paid to him, without distinction, for the benefit of all the persons for whose benefit the pension can for the time being enure or for the benefit of such of them as the Treasury may from time to time direct.

(2) Where the deceased leaves no widow, and, if he leaves a widow, after her death, the annual rate of a children's pension—

- (a) while the persons for whose benefit it can enure are three or more in number, may amount to one-third of the rate of the superannuation allowance of the deceased or to twenty-six pounds per annum, whichever is the higher ;
- (b) while the said persons are two in number, may amount to one-quarter of the rate of the superannuation allowance of the deceased, or to nineteen pounds ten shillings per annum, whichever is the higher ;
- (c) while there is only one such person, may amount to one-sixth of the rate of the superannuation allowance of the deceased or to thirteen pounds per annum, whichever is the higher.

(3) Subject to the provisions of the next succeeding subsection, where the deceased leaves a widow, the annual rate of a children's pension during her life—

- (a) while the persons for whose benefit it can enure are four or more in number, may amount to one-third of the rate of the superannuation allowance of the deceased or to twenty-six pounds per annum, whichever is the higher ;
- (b) while the said persons are three in number, may amount to one-quarter of the rate of the superannuation allowance of the deceased, or to nineteen pounds ten shillings per annum, whichever is the higher ;

PART I
—cont.

- (c) while the said persons are two in number, may amount to one-sixth of the rate of the superannuation allowance of the deceased, or to thirteen pounds per annum, whichever is the higher ;
- (d) while there is only one such person, may amount to one-twelfth of the rate of the superannuation allowance of the deceased or to six pounds ten shillings per annum, whichever is the higher :

Provided that—

- (i) where all the persons for whose benefit a children's pension can enure were at the time of the death of the deceased in the care of some person other than the widow, the Treasury may, if they think fit, direct that subsection (2) of this section shall apply notwithstanding that the widow is still alive ; and
- (ii) where some but not all of those persons were at that time in the care of some person other than the widow, the annual rate of the children's pension may, if the Treasury think fit, amount to the sum of the rate to which it might have amounted if those persons were left out of account and the rate to which it might have amounted if the widow were dead and the other persons were left out of account, so, however, that in no case shall the annual rate of the pension amount to more than either one-third of the rate of the superannuation allowance of the deceased or twenty-six pounds per annum, whichever is the higher.

(4) Notwithstanding anything in the preceding provisions of this section, where the deceased leaves a widow and no widow's pension is granted to her or, if one is granted to her, it ceases to be paid before her death, no children's pension shall be payable as respects any period comprised within the life-time of the widow or within the time in respect of which no widow's pension is payable, as the case may be, unless the Treasury specially direct that such a pension shall be so payable, but, if the Treasury do specially so direct, they may, if they think fit, further direct that subsection (2) of this section shall apply as respects any such period notwithstanding that the widow is alive.

Contributions under Part I

Duty to pay
contributions
under Part I.

6. The provisions of the three next succeeding sections shall have effect for the purpose of securing that part of the cost of the pensions payable under this Part of this Act is borne by contributions by persons to whom this Part of this Act applies.

Periodical
contributions
under Part I.

7.—(1) At the time when this Part of this Act first applies to a person or within six months thereafter, he shall elect whether or not to make contributions under this section.

PART I
—cont.

(2) Where a person who has no wife when this Part of this Act first applies to him marries or first marries thereafter, he shall, unless he has previously elected under subsection (1) of this section to make contributions under this section, again elect, at the time of his marriage or within six months thereafter, whether or not to make such contributions.

(3) Contributions by a person under this section—

- (a) shall be equal to one and a quarter per cent. of the amount of the salary from time to time payable to him, exclusive of allowances and payments for overtime ;
- (b) shall be payable in respect of his salary from the date as from which his election to pay the contributions becomes effective until he ceases to be a civil servant; and
- (c) shall be paid at such times and in such manner as the Treasury may determine.

An election by a person under subsection (1) of this section shall be effective as from the date when this Part of this Act first applies to him and an election by a person under subsection (2) of this section shall be effective as from the date when he marries or first marries thereafter.

(4) Contributions under this section are hereafter in this Part of this Act referred to as “periodical contributions.”

8.—(1) If—

- (a) when a person who had made periodical contributions ceases to be a civil servant, it appears that he has had no wife throughout the period for which this Part of this Act applied to him ; or
- (b) a person who has made periodical contributions ceases to be a civil servant under such circumstances that he is not eligible for the grant of a superannuation allowance and will not become eligible therefor on attaining a particular age,

Return of
periodical
contributions
under Part I.

the whole of his periodical contributions may be returned to him.

(2) In any other case where a person ceases to be a civil servant after making periodical contributions, there may be returned to him such of those contributions, if any, beginning with the last of them, as is necessary in order to secure that the period in respect of which such contributions are paid by him without being returned—

- (a) is an exact number of years; and
- (b) does not extend beyond the date on which his reckonable service amounted to forty years ; and

PART I
—cont.

- (c) if he has no wife when he ceases to be a civil servant, does not extend beyond the date on which he last had a wife.

(3) Where any contributions are returned under this section, they may be returned with compound interest at such rate or rates as the Treasury may from time to time determine.

Contribution
under Part I
by reduction
in additional
allowances
and death
gratuities.

9.—(1) Subject to the provisions of this section, where an additional allowance or a gratuity under section two of the Superannuation Act, 1909, becomes payable to or in respect of a person to whom this Part of this Act applies, a contribution under this section shall be made in respect of him, taking the form of a reduction in the amount of the allowance or gratuity.

(2) A contribution shall not be made under this section where the civil servant has no wife when he ceases to be a civil servant and has had no wife throughout the period for which this Part of this Act applied to him, or where the number of relevant years, as defined in subsection (4) of this section, is nil.

(3) Where subsection (2) of this section does not apply, the contribution shall be equal to one-eightieth of the average annual amount of the salary and emoluments of the civil servant's office during the last three years of his service, multiplied by the number of relevant years as defined in subsection (4) of this section.

(4) In this section, the expression "the number of relevant years" means—

- (a) if the civil servant has a wife when he ceases to be a civil servant, the number of completed years of reckonable service which he then has ;
- (b) if the civil servant has no wife when he ceases to be a civil servant, the number of completed years of reckonable service which he had when he last had a wife before that date,

reduced, in each case, by the number of years, if any, for which periodical contributions have been made by him and are not returnable.

(5) Service after forty years of reckonable service shall be left out of account for the purposes of this section.

(6) Any reduction effected or to be effected under this section in the amount of any additional allowance shall be left out of account for the purposes of subsection (2) of section two of the Superannuation Act, 1909 (which provides for a supplemental death gratuity in the cases of persons dying shortly after becoming eligible for a superannuation allowance) and, accordingly, the question whether any and if so what gratuity may be granted under that subsection shall be determined as if no such reduction as aforesaid had been or had to be made.

*Application of Part I*PART I
—cont.Application
of Part I
to existing
and future
male civil
servants.

10.—(1) Subject to the provisions of this section, this Part of this Act shall apply to all male persons who are civil servants at the date of the passing of this Act or thereafter become civil servants.

(2) A male person who is a civil servant at the date of the passing of this Act and has then a wife may, within the six months next following the date of passing of this Act, elect that this Part of this Act shall not apply and shall be deemed never to have applied to him.

(3) A male person who is a civil servant at the date of the passing of this Act and has then no wife may, within the six months next following the date on which he marries or first marries thereafter, elect that this Part of this Act shall not apply and shall be deemed never to have applied to him :

Provided that a person shall not make an election under this subsection if he has already elected to make periodical contributions.

(4) Where—

(a) a person who is at the date of the passing of this Act employed in an unestablished capacity or part-time service thereafter becomes a civil servant ; and

(b) any of that service is reckonable service, whether as to the whole or as to any part thereof,

the provisions of the last two preceding subsections shall apply in relation to him as they apply in relation to a person who is at the date of the passing of this Act a civil servant, but as if for the references therein to the date of the passing of this Act there were substituted references to the date when he becomes a civil servant.

(5) Where—

(a) a person has elected under this section that this Part of this Act shall not apply and shall be deemed never to have applied to him ; and

(b) his marriage comes to an end ; and

(c) he again marries,

he may, before the expiration of six months from the date of the marriage referred to in paragraph (c) of this subsection, give a notice cancelling that election.

11.—(1) A male person who was a civil servant before the passing of this Act but had by then ceased to be a civil servant, may, if either—

(a) he was a civil servant at some time on or after the eighth day of May, nineteen hundred and forty-five ; or

Application
of Part I with
modifications
to certain
retired
male civil
servants.

PART I
—cont.

(b) before the passing of this Act and after ceasing to be a civil servant, he served in an unestablished capacity his service in which either—

(i) included at least six months of continuous service beginning on or after the said eighth day of May ; or

(ii) followed immediately upon his service as a civil servant, was in the post which he last held as a civil servant or in a similar post, and included, and was continuous until, the said eighth day of May,

elect, within the six months next following the passing of this Act, that this Part of this Act shall apply to him :

Provided that a person may not make an election under this section unless he was married when he ceased to be a civil servant and his wife is still living when he makes the election.

(2) A person who makes an election under this section shall be liable to make the same contribution as would have fallen to be made by him under section nine of this Act if this Act had been passed before he ceased to be a civil servant and this Part of this Act had applied to him, and, if he has already been paid his additional allowance or there is no additional allowance payable in his case, he shall pay the amount of that contribution to the Treasury not later than twelve months from the date of the election.

(3) If any amount payable to the Treasury under subsection (2) of this section is not paid in full within the twelve months next following the election and the person who should have paid it is still living at the end of the said twelve months, the election shall be ineffective.

(4) If any amount falls to be paid under subsection (2) of this section and the person by whom it is to be paid dies within the twelve months next following the date of the election without having paid the whole of that amount,—

(a) no further payments shall be made under that subsection ; and

(b) any widow's pension or children's pension which may be payable in respect of his service shall be reduced so as to bear to the full amount thereof the same proportion as the amount paid under the said subsection (2) bears to the full amount which fell to be paid thereunder ; and

(c) the election shall be ineffective unless either a widow's pension or a children's pension can be paid in respect of his service at a rate equal to at least six pounds ten shillings per annum.

(5) Where an election is ineffective under subsection (3) or subsection (4) of this section, so much of the amount payable under subsection (2) of this section as has already been paid shall be repaid.

PART I
—cont.

12.—(1) A woman civil servant who has a husband may, on proof to the satisfaction of the Treasury that her husband is wholly or mainly dependent on her, elect that this Part of this Act shall apply to her. Application of Part I with modifications to women.

(2) A woman who has a husband and was a civil servant before the passing of this Act but had by then ceased to be a civil servant may, on proof to the satisfaction of the Treasury that her husband is, and, when she last was a civil servant, was, wholly or mainly dependent on her, have the same right to elect that this Part of this Act shall apply to her as she would have had under the last preceding section if she had been a man whose wife was still living, and all the provisions of that section shall apply to her accordingly.

(3) Where this Part of this Act applies to a woman by reason of an election under this section, all the provisions of this Act shall apply in relation to her as if references therein to a male person who is or was a civil servant included references to her, and as if any reference to the wife or widow of such a person included a reference to her husband or her widower:

Provided that—

- (a) where she leaves a widower, the Treasury may, if they think fit, direct that subsection (2) of section five of this Act shall apply to any children's pension payable in respect of her service to the exclusion of subsection (3) thereof, notwithstanding that some or all of the persons for whose benefit the pension can enure were not at the time of her death in the care of some person other than the widower; and
- (b) if her husband dies and she remarries, the subsequent marriage and the children thereof shall be left out of account for all the purposes of this Part of this Act unless she proves to the satisfaction of the Treasury, at some time while she is still a civil servant, that her husband by that marriage is wholly or mainly dependent on her.

Miscellaneous

13.—(1) Save as is provided in subsection (2) of this section, the fact that this Part of this Act applies to a person shall not affect his rights under section two of the Superannuation Act, 1935 (which provides for the partial allocation of superannuation benefits to wives and dependants), and the pensions payable under this Part of this Act in respect of the service of a person shall be calculated as if any surrender under that section of a part of a superannuation allowance had not been made. Saving for allocations under Superannuation Act, 1935, s. 2, and power to revoke allocations to beneficiaries under Part I.

PART I
—cont.

(2) Where a person who has ceased to be a civil servant at the time of the passing of this Act duly elects that this Part of this Act shall apply to him, he may, if he thinks fit, by notice given at the time of his election, cancel any surrender made under the said section two of any superannuation allowance, being a surrender made for the purpose of enabling the Treasury to grant a pension to a person to whom or for whose benefit a pension may be granted under this Part of this Act in respect of his service, and in that event the surrender, and any grant of a pension made by reason thereof under the said section two, shall not have effect as respects so much of the allowance or pension as accrues on or after the date on which the cancellation becomes effective, without prejudice, however, to the effect, as respects so much of the allowance or pension as accrued before that date, of the said surrender and of any such grant of a pension.

(3) A cancellation under subsection (2) of this section shall not become effective until the contribution falling to be made by virtue of the election has been paid, and the references in the said subsection (2) to the date on which the cancellation becomes effective shall be construed accordingly.

Superan-
nuation Acts
to apply in
their most
recent form
where
Part I applies.

14.—(1) Where this Part of this Act becomes applicable to a male person to whom sections one and two of the Superannuation Act, 1909, do not apply, the said sections one and two shall apply to him as they apply to male civil servants who entered the service after the passing of that Act.

(2) If a female person to whom the said sections one and two do not apply duly elects that this Part of this Act shall apply to her, the said sections one and two shall apply to her as they apply to female civil servants who entered the service after the commencement of the Superannuation Act, 1935.

(3) Section four of the Superannuation Act, 1935 (which relates to the averaging of salary and emoluments) shall apply to every person who duly elects that this Part of this Act shall apply to him, notwithstanding that he is comprised in the exceptions enumerated in subsection (1) of the said section four.

(4) Where this Part of this Act becomes applicable to an existing member of the diplomatic service, as defined in the Superannuation (Diplomatic Service) Act, 1929, who gave notice under section two of that Act that he desired to remain subject to the provisions of the Diplomatic Salaries, &c. Act, 1869, the Superannuation (Diplomatic Service) Act, 1929, shall apply to him as it applies to persons who were in the diplomatic service but were not existing members thereof as defined as aforesaid, and a superannuation allowance, additional allowance or gratuity may be granted to or in respect of him accordingly.

PART I
—cont.

(5) Where a person who duly elects that this Part of this Act shall apply to him had ceased to be a civil servant at the time of the passing of this Act, the provisions of subsections (1) to (4) of this section shall not affect the superannuation allowance or diplomatic pension, or, save so far as it may be reduced by a contribution, the additional allowance, if any, which has been or may be granted to him, but the pensions payable under this Part of this Act in respect of his service, and the contributions payable by him under this Part of this Act, shall be calculated as if the said allowances might have been granted in accordance with the provisions of the said subsections (1) to (4) and not otherwise.

PART II

DEPENDANTS' PENSIONS

Pensions under Part II

15.—(1) Subject to the provisions of this Part of this Act, a person who is a civil servant may, at any time before he ceases to be a civil servant, nominate another person who satisfies the conditions in that behalf specified in this Part of this Act as to relationship, dependence and otherwise, as a person to whom or for whose benefit a pension may be granted under this Part of this Act after the nominator's death, and, subject as aforesaid, the Treasury may, after the death of the nominator and if the nomination is still in force, grant a pension accordingly to or for the benefit of the person nominated.

Power to grant
pensions to
nominated
dependants of
civil servants.

(2) Pensions under this Part of this Act shall be either—

- (a) pensions which may continue for the life of the grantee (in this Part of this Act referred to as "life pensions"); or
- (b) pensions which (subject to the provisions of the First Schedule to this Act) may be paid only while the persons for whose benefit they are granted are still in their period of childhood and full-time education (in this Part of this Act referred to as "pensions of limited duration").

(3) In this Part of this Act, the expression "nomination" means such a nomination as is referred to in subsection (1) of this section, and the expressions "nominate", "nominator" and "nominee" shall be construed accordingly:

Provided that, except where the context otherwise requires, the expression "nominee" does not include a nominee under a nomination which has ceased to be in force.

16.—(1) A pension shall not be granted under this Part of this Act unless—

- (a) the nominator had become eligible for the grant of a superannuation allowance (whether such an allowance had actually been granted or not); or

Pensions
under Part II
to depend on
nominator's
superannuation
allowance.

PART II
—*cont.*

- (b) the nominator was still serving as a civil servant at the time of his death and would, if he had then retired upon a medical certificate, have been eligible for the grant of a superannuation allowance ; or
- (c) the nominator had ceased to be a civil servant in such circumstances that, on attaining a particular age, he would or might have become eligible for superannuation allowance by virtue of subsection (2) of section thirty-four of this Act (which relates to superannuation benefit in certain cases of premature retirement).

(2) In this Part of this Act, the expression “the rate of the superannuation allowance of the nominator” means the annual rate of the superannuation allowance mentioned in subsection (1) of this section for which the nominator had become eligible (whether such an allowance at that or any other rate had actually been granted or not) or, as the case may be, for which he would or might have become eligible, any abatements falling to be made under regulations made under subsection (4) of section sixty-nine of the National Insurance Act, 1946, being left out of account.

Life pensions

17.—(1) A life pension may be granted to a nominee who was nominated after the end of his period of childhood and full-time education.

(2) A life pension may be paid in respect of the whole period from the death of the nominator until the death of the nominee.

(3) Notwithstanding anything in the preceding provisions of this section, a life pension shall not be granted to a female nominee if either—

(a) at the time of the death of the nominator, she is married ; or

(b) at or after the time of the death of the nominator, she cohabits with any person,

and if, after the granting of a life pension to a female nominee, she marries or cohabits with any person, the pension shall cease as from the date of the marriage or the commencement of the cohabitation :

Provided that where—

(i) a pension is withheld or ceases under this section ; and

(ii) the Treasury are satisfied at a subsequent date that the marriage or cohabitation has come to an end or that there are compassionate grounds for the payment of pension notwithstanding the marriage,

the Treasury may, if they think fit, grant or re-grant the pension as from that date.

(4) The annual rate of a life pension may amount to one-third of the rate of the superannuation allowance of the nominator or to twenty-six pounds per annum, whichever is the higher.

18.—(1) A pension of limited duration may be granted if, and be paid so long as and whenever, there are nominees for whose benefit it can enure, and, subject to the provisions of this section and to the provisions of the First Schedule to this Act, the nominees for whose benefit such a pension can enure are nominees who are for the time being in their period of childhood and full-time education.

PART II
—cont.

Pensions of
limited
duration.

(2) Only one pension of limited duration shall be granted in respect of the nominations of any one person but—

- (a) the rate thereof may vary according to the number of persons for whose benefit it can for the time being enure ; and
- (b) it shall be paid to such person or persons as the Treasury may from time to time direct, and different parts thereof may be directed to be paid to different persons ; and
- (c) the person to whom all or any part thereof is paid shall apply the sum paid to him, without distinction, for the benefit of all the persons for whose benefit the pension can for the time being enure or for the benefit of such of them as the Treasury may from time to time direct.

(3) The annual rate of a pension of limited duration—

- (a) while the persons for whose benefit it can enure are three or more in number, may amount to one-third of the rate of the superannuation allowance of the nominator or to twenty-six pounds per annum, whichever is the higher ;
- (b) while the said persons are two in number, may amount to one-quarter of the rate of the superannuation allowance of the nominator, or to nineteen pounds ten shillings per annum, whichever is the higher ;
- (c) while there is only one such person, may amount to one-sixth of the rate of the superannuation allowance of the nominator or to thirteen pounds per annum, whichever is the higher.

(4) A pension of limited duration cannot enure for the benefit of a female nominee who at the time of the death of the nominator was married or was cohabiting with any person, and, if, after the death of the nominator, a female nominee marries or cohabits with any person, she shall cease to be a person for whose benefit a pension of limited duration can enure :

Provided that where—

- (a) such a pension as aforesaid is withheld from or does not enure for the benefit of a nominee by virtue of this subsection ; and

PART II
—*cont.*

(b) the Treasury are satisfied at a subsequent date that the marriage or cohabitation has come to an end or that there are compassionate grounds for permitting the pension to enure for her benefit notwithstanding the marriage,

the Treasury may, if they think fit, grant the pension, or, as the case may be, permit the pension to enure for her benefit, as from that date.

Contributions under Part II

Duty to pay
contributions
under Part II.

19.—(1) Where a person makes a nomination, contributions shall be made by him in accordance with this and the three next succeeding sections in respect of that nomination, at rates ascertained by reference to tables to be prepared from time to time by the Government Actuary.

(2) The said tables shall classify nominations according to the ages and sexes of the nominator and the nominee and according to whether or not the nominee is presumptively eligible for a life pension, and shall, in relation to each of the two kinds of contribution provided for by the three next succeeding sections, fix a rate of contribution (expressed as a percentage) for each class of nomination; and those rates shall be fixed with a view to securing that, as nearly as may be, the value of the contributions payable in respect of each class of nomination is equivalent to half the burden of the pensions payable under this Part of this Act by reason of nominations of that class.

(3) It shall be assumed, in preparing the said tables, that no nominator will ever make more than one nomination, and where two or more nominations (being nominations where the nominee is not presumptively eligible for a life pension) are in force at the same time, the contributions to be made in respect of the second nomination and the third nomination, if any, shall be at half the rate specified in the tables:

Provided that where two or more nominations are made on the same day, the one with the youngest nominee shall be deemed for the purpose of this subsection to be made first, and so on.

(4) In this Part of this Act, the expression "the appropriate percentage" means, in relation to the contributions of any kind payable in respect of a nomination of any class, the percentage or, as the case may be, half the percentage, which, in the tables prepared under this section which are in force at the date of the nomination, is expressed to be the rate for contributions of that kind in respect of nominations of that class.

Periodical
contributions
under Part II.

20.—(1) When a person makes a nomination, he shall elect whether or not to make contributions under this section in respect of it.

(2) Contributions by a person under this section—

PART II
—cont.

(a) shall be equal to the appropriate percentage of the amount of the salary from time to time payable to him, exclusive of allowances and payments for overtime;

(b) shall be payable in respect of his salary from the date of the nomination—

(i) until he ceases to be a civil servant ; or

(ii) if the nomination becomes void before he ceases to be a civil servant, until the nominator gives notice to the Treasury of the avoidance of the nomination or, as the case may be, of the event causing it to be void ; or

(iii) if the nomination was made during the nominee's period of childhood and full-time education, until the nominee attains the age of sixteen years,

whichever first occurs ;

(c) shall be paid at such times and in such manner as the Treasury may determine :

Provided that the Treasury may, if in all the circumstances they think fit so to do, direct, in relation to a nomination which becomes void before the nominator ceases to be a civil servant, that contributions shall not be payable in respect of the salary of the nominator after the date on which the nomination becomes void.

(3) Contributions under this section are hereafter in this Part of this Act referred to as "periodical contributions".

21.—(1) If a person who has made periodical contributions in respect of a nomination ceases to be a civil servant under such circumstances that he is not eligible for the grant of a superannuation allowance and will not become eligible therefor on attaining a particular age, the whole of his periodical contributions in respect of that nomination may be returned to him.

Return of
periodical
contributions
under Part II.

(2) In any other case where a person ceases to be a civil servant after making periodical contributions in respect of a nomination, there may be returned to him such of those contributions, if any, beginning with the last of them, as is necessary in order to secure that the period in respect of which such contributions are paid by him without being returned—

(a) is an exact number of years ; and

(b) does not extend beyond the date on which his reckonable service amounted to forty years.

(3) Where any contributions are returned under this section, they may be returned with compound interest at such rate or rates as the Treasury may from time to time determine.

**PART II
—cont.**

Contribution
under Part II
by reduction
in additional
allowances
and death
gratuities.

22.—(1) Subject to the provisions of this section, where an additional allowance or a gratuity under section two of the Superannuation Act, 1909, becomes payable to or in respect of a person who has made a nomination, a contribution under this section shall be made in respect of that nomination, taking the form of a reduction in the amount of the allowance or gratuity.

(2) A contribution shall not be made under this section in respect of a nomination where the number of relevant years, as defined in subsection (4) of this section, is nil.

(3) Where subsection (2) of this section does not apply, the contribution shall be equal to the appropriate percentage of the average annual amount of the salary and emoluments of the nominator's office during the last three years of his service, multiplied by the number of relevant years, as defined in subsection (4) of this section.

(4) In this section, the expression "the number of relevant years" means the number of completed years of reckonable service which the nominator has on whichever of the following dates first occurs, that is to say—

(a) the date when the nominator ceases to be a civil servant ; or

(b) if the nomination became void before the nominator ceased to be a civil servant, the date when the nominator gives notice to the Treasury of the avoidance of the nomination or, as the case may be, of the event by reason of which the nomination became void ; or

(c) if the nomination was made during the nominee's period of childhood and full-time education, the date when the nominee attains the age of sixteen years,

reduced, in each case, by the number of years, if any, for which periodical contributions have been made by him in respect of the nomination and are not returnable.

(5) Service after forty years of reckonable service shall be left out of account for the purposes of this section.

(6) Where a nomination becomes void before the nominator ceases to be a civil servant, otherwise than by revocation, the Treasury may, if in all the circumstances they think fit so to do, direct that this section shall have effect in relation to it as if references to the date when it became void were substituted for references to the date when the nominator gave notice to the Treasury of the avoiding thereof or, as the case may be, of the event by reason of which it became void.

(7) Any reduction effected or to be effected under this section in the amount of any additional allowance shall be left out of account for the purposes of subsection (2) of section two of the Superannuation Act, 1909 (which provides for a supplemental

death gratuity in the cases of persons dying shortly after becoming eligible for a superannuation allowance) and, accordingly, the question whether any and if so what gratuity may be granted under that subsection shall be determined as if no such reduction as aforesaid had been or had to be made.

PART II
—cont.

Limitations on right to nominate, avoidance of nominations, etc.

23.—(1) A nominee must be the mother or father of the nominator, a sister, brother or child of the nominator, a child of a deceased sister or deceased brother of the nominator or a child of a deceased child of the nominator. Nominees must be related to and dependent on the nominator.

(2) A nominee must at the date of the nomination, and at all times thereafter until the nominator ceases to be a civil servant, be wholly or mainly dependent on the nominator.

(3) In their nominations, persons shall give preference to their children over their other dependants and accordingly a person who has a child who might be, but is not, a nominee of his, shall not have any nominee who is not a child of his.

24. Subject to the provisions of the First Schedule to this Act, the maximum number of nominees which a person may have at the same time is as follows, that is to say— Limitation of number of nominees.

- (a) he may have one nominee who is presumptively eligible for a life pension; or
- (b) he may have up to three nominees who are not presumptively eligible for life pensions.

25.—(1) Subject to the provisions of the First Schedule to this Act— Prevention of overlap with Part I.

- (a) a person who is for the time being presumptively eligible for a pension under Part I of this Act in respect of the service of any person shall not be or remain the nominee of that person; and
- (b) a civil servant to whom Part I of this Act applies and who has a wife or a husband and a woman civil servant to whom Part I of this Act does not apply but who has an incapacitated husband wholly or mainly dependent on her, shall not have any nominee.

(2) Where—

- (a) the marriage of a person, whether male or female, to whom Part I of this Act applies comes to an end after the said Part I has become applicable to him or to her and before he or she has ceased to be a civil servant; and
- (b) when the marriage came to an end, there was any person presumptively eligible for a children's pension under the said Part I in respect of his or her service,

the number of nominees permissible under paragraph (b) of the last preceding section shall, during any period during which any

PART II
—cont.

person who was presumptively eligible as aforesaid is alive and is still in his period of childhood and full-time education, be reduced by one for each such person who is alive and is still in his said period.

(3) The references in the preceding provisions of this section to a person presumptively eligible at any date for a pension under Part I of this Act in respect of the service of another person shall be construed as references to any person to whom or for whose benefit such a pension could have been granted if that other person had died on that date, it being assumed (notwithstanding any provision of the Superannuation Acts which has the effect of requiring a minimum period of service as a condition of the grant of a superannuation allowance) that that other person would have been eligible for a superannuation allowance if he had retired on that date from the civil service upon a medical certificate.

(4) A male person to whom Part I of this Act does not apply by reason of an election of his that it should not apply to him shall be in the same position under this section as he would have been in if he had not made that election, and the preceding provisions of this section shall have effect in relation to him accordingly as if—

- (a) the said Part I applied to him during all periods during which it would have applied to him if he had not made the election; and
- (b) any persons who, on any date, would be or would have been presumptively eligible for a pension under the said Part I in respect of his service were then, or, as the case may be, had then been, presumptively eligible for such a pension in respect thereof.

Avoidance of
nominations.

26.—(1) A purported nomination made in contravention of any of the provisions of the three last preceding sections shall be void.

(2) A nomination validly made may at any time be revoked by the nominator by a notice given by him and shall thereupon become void.

(3) Where a nomination validly made becomes, owing to a change in circumstances, one which is not permissible under the three last preceding sections, it shall thereupon become void.

(4) A nomination shall become void on the death of the nominee.

(5) Subject to the provisions of the First Schedule to this Act, a nomination which is made during the nominee's period of childhood and full-time education shall become void upon the cessation of the nominee's period of childhood and full-time education.

27.—(1) A nomination which is otherwise valid shall not be invalid by reason only that the nominee has previously been nominated by the same person under a nomination which has become void.

PART II
—*cont.*

Renominations
of nominees
under previous
nominations
which have
become void.

(2) Where a nomination validly made has become void at any time on the ground that a child of the nominator might then have been but was not a nominee of his and the nominator has died or retired without having made a new nomination, the Treasury may, if in the circumstances they think fit so to do, direct that the provisions of this Act shall have effect as if the nominator, immediately after the event by which the nomination was avoided, had nominated the person who was the nominee under the nomination (or, where more than one nomination was avoided by that event, such of those persons as may be specified in the direction) and had also nominated his child.

(3) Where a person nominates another person who has been his nominee under a previous nomination which has become void, then, subject to the provisions of subsection (4) of this section, the Treasury may, if in the circumstances they think fit so to do, direct that the contributions payable in respect of the nominations shall be calculated as if the previous nomination had never become void:

Provided that where the nominator has elected to make periodical contributions under the first nomination, he shall not, except so far as the Treasury may otherwise direct, make periodical contributions in respect of the period after the first nomination became void and before the new nomination is made, and the amount which he is to contribute by way of a reduction of his additional allowance or gratuity shall be calculated accordingly.

(4) The provisions of subsection (3) of this section shall not apply where—

- (a) the nominee is, under the new nomination, and was not, under the previous nomination, presumptively eligible for a life pension; or
- (b) the nominee is not, under the new nomination, but was, under the previous nomination, presumptively eligible for a life pension,

but, in any such case, the Treasury may, if they think fit, direct that—

- (i) all or any of the periodical contributions, if any, made in respect of the first nomination shall be returned to the nominator; and
- (ii) that no contribution, or a reduced contribution, shall be made in respect of the first nomination by way of a reduction of an additional allowance or gratuity.

PART II
—cont.

(5) Where any contributions are returned under subsection (4) of this section, they may be returned with compound interest at such rate or rates as the Treasury may from time to time determine.

Power to refuse
nominations
on ground of
nominator's
ill-health.

28.—(1) The Treasury may refuse to accept a nomination if they are not satisfied that the nominator was, having regard to his age, in good health at the time of the making of the nomination, and any nomination refused under this subsection shall be void.

(2) A person who makes a nomination shall, when he makes the nomination and subsequently, make such declarations and provide such information as the Treasury may reasonably require for the purpose of enabling them properly to exercise the powers conferred on them by subsection (1) of this section and shall, if so required by the Treasury for that purpose, submit to be medically examined by a registered medical practitioner nominated or approved in that behalf by the Treasury.

Power of
certain retired
civil servants
to make
nominations.

29.—(1) A person who was a civil servant before the passing of this Act but had by then ceased to be a civil servant may, if either—

(a) he was a civil servant at some time on or after the eighth day of May, nineteen hundred and forty-five; or

(b) before the passing of this Act and after ceasing to be a civil servant, he served in an unestablished capacity his service in which either—

(i) included at least six months of continuous service beginning on or after the said eighth day of May; or

(ii) followed immediately upon his service as a civil servant, was in the post which he last held as a civil servant or in a similar post and included, and was continuous until, the said eighth day of May,

make, within the six months next following the passing of this Act, any nomination which he might have made if he were still a civil servant:

Provided that—

(a) the nominee under a nomination made under this section must not only be wholly or mainly dependent on the nominator at the date of the nomination but also have been wholly or mainly dependent on the nominator when the nominator ceased to be a civil servant; and

(b) a person who could elect that Part I of this Act should apply to him but has not so elected shall not make any nomination under this section.

(2) A person who makes a nomination under this section shall be liable to make the same contribution in respect thereof as would have fallen to be made by him under section twenty-two

of this Act if this Act had been passed, and he had made the nomination, before he ceased to be a civil servant, regard being had to the ages of the nominator and the nominee at the actual date of the nomination, and, if he has already been paid his additional allowance or there is no additional allowance payable in his case, he shall pay the amount of that contribution to the Treasury not later than twelve months from the date of the nomination.

(3) If any amount payable to the Treasury under subsection (2) of this section in respect of a nomination is not paid in full within the twelve months next following the nomination and the person who should have paid it is still living at the end of the said twelve months, the nomination shall be ineffective.

(4) If any amount falls to be paid under subsection (2) of this section in respect of a nomination and the person by whom it is to be paid dies within the twelve months next following the date of the nomination without having paid the whole of that amount—

- (a) no further payments shall be made in respect thereof under that subsection; and
- (b) any pension which may be payable under this Part of this Act to or for the benefit of the nominee shall be reduced so as to bear to the full amount thereof the same proportion as the amount paid under the said subsection (2) in respect of the nomination bears to the full amount which fell to be paid under that subsection in respect thereof; and
- (c) the nomination shall be ineffective unless a pension under this Part of this Act at a rate equal to at least six pounds ten shillings per annum can be paid to or for the benefit of the nominee.

Where the nominee is still in his period of childhood and full-time education when the nominator dies and there are other nominees who are also then within the period of their childhood and full-time education, the references in this subsection to a pension payable for the benefit of the nominee shall be construed as including references to a pension enuring partly for his benefit and partly for the benefit of the other nominees, and the reduction required to be made by this subsection shall be calculated by reference to the aggregate of the amounts paid under subsection (2) of this section, and the aggregate of the full amounts which fell to be paid thereunder, in respect of all the nominations in respect of which the pension is payable.

(5) Where a nomination is ineffective under subsection (3) or subsection (4) of this section, so much of the amount payable under subsection (2) of this section in respect thereof as has already been paid shall be repaid.

PART II
—cont.

Saving for allocations under Superannuation Act, 1935, s. 2, and power to revoke allocations in certain circumstances.

Miscellaneous

30.—(1) Save as is provided in subsection (2) of this section, the fact that a person has made a nomination shall not affect his rights under section two of the Superannuation Act, 1935 (which provides for the partial allocation of superannuation benefits to wives and dependants), and the pensions payable under this Part of this Act to or for the benefit of the nominees of a person shall be calculated as if any surrender made by him under that section of a part of a superannuation allowance had not been made.

(2) Where a person who has ceased to be a civil servant at the time of the passing of this Act duly makes a nomination, he may, if he thinks fit, by notice given at the time he makes the nomination, cancel any surrender made under the said section two of any superannuation allowance, being a surrender made for the purpose of enabling the Treasury to grant a pension to or for the benefit of the nominee, and in that event the surrender shall not have effect as respects so much of the allowance as accrues on or after the date on which the cancellation becomes effective, without prejudice, however, to the effect of the surrender as respects so much of the allowance as has accrued before that date.

(3) A cancellation under subsection (2) of this section shall not become effective until the contribution falling to be paid in respect of the nomination has been paid, and the references in the said subsection (2) to the date on which the cancellation becomes effective shall be construed accordingly.

Superannuation Acts to apply in their most recent form where nominations made.

31.—(1) If a male person to whom sections one and two of the Superannuation Act, 1909, do not apply duly makes a nomination, the said sections one and two shall apply to him as if he had entered the service after the passing of that Act.

(2) If a female person to whom the said sections one and two do not apply duly makes a nomination, the said sections one and two shall apply to her as they apply to female civil servants who entered the service after the commencement of the Superannuation Act, 1935.

(3) Section four of the Superannuation Act, 1935 (which relates to averaging of salary and emoluments) shall apply to every person who duly makes a nomination, notwithstanding that he is comprised in the exceptions enumerated in subsection (1) of the said section four.

(4) Where an existing member of the diplomatic service, as defined in the Superannuation (Diplomatic Service) Act, 1929, who gave notice under section two of that Act that he desired to remain subject to the provisions of the Diplomatic Salaries, &c. Act, 1869, duly makes a nomination, the Superannuation

(Diplomatic Service) Act, 1929, shall apply to him as it applies to persons who were in the diplomatic service but were not existing members thereof as defined as aforesaid, and a superannuation allowance, additional allowance or gratuity may be granted to or in respect of him accordingly.

PART II
—cont.

(5) Where a person who duly makes a nomination had ceased to be a civil servant at the time of the passing of this Act, the provisions of subsections (1) to (4) of this section shall not affect the superannuation allowance or diplomatic pension or, save so far as it may be reduced by a contribution, the additional allowance, if any, which has been or may be granted to him, but the pensions payable under this Part of this Act to or for the benefit of his nominees, and the contributions payable by him under this Part of this Act, shall be calculated as if the said allowances might have been granted in accordance with the provisions of the said subsections (1) to (4) and not otherwise.

PART III

MISCELLANEOUS AMENDMENTS OF THE SUPERANNUATION ACTS

32.—(1) Where—

(a) a person, on retiring from the civil service upon a medical certificate, becomes eligible for the grant of a superannuation allowance; and

(b) his reckonable service is less than twenty years, the same superannuation allowance and additional allowance, if any, may be granted to him as might have been granted to him if his reckonable service had been twenty years.

Increase of
superannua-
tion and
additional
allowances in
cases of
retirement for
ill-health with
less than
twenty years'
service.

(2) In the case of a person whose reckonable service would, if he had continued to serve in the employment in which he was when he was last a civil servant until five years after the retiring age, have been a period shorter than twenty years, subsection (1) of this section shall have effect as if for the last reference therein to twenty years there were substituted a reference to that shorter period.

(3) The provisions of this section shall apply and shall be deemed always to have applied to persons who retired from the civil service at any time after the third day of December nineteen hundred and forty-eight, and to persons who so retired on or before that date and are living at the passing of this Act, and superannuation allowances and additional allowances granted before the passing of this Act may be increased accordingly; but nothing in this subsection shall authorise the payment, in respect of any period before the passing of this Act, of any increase in the superannuation allowance of a person who retired as aforesaid on or before the said third day of December.

PART III
—cont.

(4) This section applies only—

- (a) to cases of actual retirement from the civil service upon a medical certificate; and
- (b) to the computation of pensions under Part I and Part II of this Act which fall to be computed by reference to the amount of the superannuation allowance for which a person who dies while a civil servant would have been eligible if, instead of dying, he had retired upon a medical certificate,

and does not affect cases falling within, or pensions under the said Part I or the said Part II falling to be computed by reference to the superannuation allowance grantable under, any provision (whether contained in this or in any other Act) which provides for the grant, in other circumstances, of the same superannuation allowance or additional allowance as might be granted on retirement from the civil service upon such a certificate.

Power of
certain retired
civil servants to
allocate part
of their
superannuation
benefits to
their spouses.

33.—(1) The Treasury may make rules for securing that, in such circumstances and subject to such conditions as to proof of good health and other matters as may be specified in the rules, a retired civil servant under seventy years of age who has married since his retirement shall be allowed to surrender, as from the date of his marriage, in return for the benefits of the rules, such part of any superannuation allowance granted or to be granted to him as may be specified in the rules and for enabling the Treasury to grant to his spouse a pension of such value as, according to tables prepared from time to time by the Government Actuary is actuarially equivalent, at the said date, to the value of that part of the superannuation allowance which is surrendered:

Provided that the part of a superannuation allowance surrendered by a person under this section, together with any part thereof surrendered under section two of the Superannuation Act, 1935, shall not exceed one-third of the allowance.

(2) This section applies whether the civil servant retired before or after the passing of this Act, but it shall not apply where the retirement was on the ground of ill health.

(3) Subsections (2) and (3) of section two of the Superannuation Act, 1935, so far as they apply to surrenders made for the benefit of spouses and pensions granted to spouses, shall apply also to surrenders under this section and pensions granted by virtue thereof, but as if any references to the date of retirement were references to the date of the marriage.

(4) In relation to a person whose marriage took place before the date of the making of the first rules made under this section,

subsections (1) and (3) of this section shall have effect as if for references therein to the date of the marriage there were substituted references to the date on which that person notifies in accordance with the rules his desire to make the surrender.

PART III
—cont.

(5) The power conferred by this section to make rules shall be exercisable by statutory instrument.

34.—(1) If, after the passing of this Act,—

(a) the employment of a civil servant who has attained the age of fifty years is terminated before the retiring age ; and

Superannua-
tion benefit in
certain cases
of premature
retirement.

(b) the appropriate Minister certifies that the termination of his employment is desirable in the interests of efficiency,

the same superannuation allowance and additional allowance, if any, may be granted to him as might have been granted to him if he had retired upon a medical certificate.

In this subsection, the expression “ the appropriate Minister ” means the Minister responsible for the civil servant’s department, or, if there is no such Minister or there is any doubt as to who that Minister is, such Minister as may be determined by the Treasury.

(2) If, after the passing of this Act, the employment of a civil servant who has attained the age of fifty years is terminated at his request before the retiring age, the same superannuation allowance and additional allowance, if any, may be granted to him as might have been granted to him if he had retired upon a medical certificate :

Provided that, unless the Treasury otherwise determine on compassionate grounds, no such allowance shall be granted to a person by virtue of this subsection before he attains the age which would have been the retiring age for him if he had continued in the employment in which he was when he was last a civil servant.

(3) Where a person who would have been eligible for the grant of a superannuation allowance but for the operation of the proviso to subsection (2) of this section dies without any such allowance being granted to him, the Treasury may grant to his legal personal representatives such gratuity, if any, as might have been granted to them if he had died on the last day on which he was employed as a civil servant.

(4) Nothing in this section applies to a civil servant who is, or to a person who, when he was last a civil servant, was, a member of His Majesty’s foreign service of a grade not lower than that of second secretary.

PART III
—cont.

Additions to
pensions etc.
for service
after retiring
age in certain
cases.

35.—(1) Where a civil servant continues to serve as such after both the two following conditions are satisfied in relation to him, that is to say—

(a) that he has attained the retiring age; and

(b) that he has forty years of reckonable service,

any superannuation allowance or additional allowance which may be granted to him shall be calculated in accordance with the subsequent provisions of this section.

(2) The said allowances shall be computed—

(a) upon the amount of salary and emoluments upon which they would have fallen to be computed if he had retired as soon as the said two conditions were satisfied in relation to him; or

(b) upon the amount of salary and emoluments upon which they would fall to be computed apart from this section,

whichever is the higher.

(3) For each completed year, not exceeding five, of the reckonable service of the civil servant after the said two conditions were satisfied in relation to him—

(a) the superannuation allowance may be increased by one-eightieth, or, if section one of the Superannuation Act, 1909, does not apply, one-sixtieth, of the higher of the amounts mentioned in subsection (2) of this section; and

(b) the additional allowance, if any, may be increased by three-eightieths, or, if section four of the Superannuation Act, 1935, does not apply, one-thirtieth, of the higher of those amounts:

Provided that section two of the Superannuation Act, 1946 (which enables the service of certain late entrants to the civil service to be reckoned at eight-fifths of its actual length) shall not apply to the computation, for the purposes of this subsection, of the reckonable service of a person after the said two conditions are satisfied in relation to him.

(4) This section, so far as it applies to additional allowances, applies also for the purposes of section two of the Superannuation Act, 1914 (which provides, in certain cases, for death gratuities being calculated in the same way as additional allowances).

(5) The provisions of Parts I and II of this Act shall, in relation to persons to whom this section applies, have effect subject to the provisions of Part I of the Second Schedule to this Act.

(6) In the case of any person who is serving as a civil servant at the passing of this Act, the reckonable service which may be taken into account for the purposes of subsection (3) of this section shall include service before the passing of this Act.

(7) The provisions of this section shall apply, and shall be deemed always to have applied, to any person who ceased to be a civil servant before the passing of this Act but was serving as a civil servant or in an unestablished capacity on the third day of December, nineteen hundred and forty-eight, and any superannuation allowance or additional allowance granted to any such person before the passing of this Act may be increased accordingly.

PART III
—cont.

36.—(1) Where—

- (a) a person who has ceased to be a civil servant re-enters, either immediately or after an interval, the civil service of the State to serve in an unestablished capacity ; and
- (b) when he re-enters the civil service of the State, he has been granted or is eligible for the grant of a superannuation allowance,

Additions to pensions etc. in certain cases of unestablished employment after retirement.

any superannuation allowance or additional allowance granted to him may, as from the cessation of the said service in an unestablished capacity, be increased in accordance with the subsequent provisions of this section :

Provided that—

- (i) any service in an unestablished capacity which is not continuous service lasting for at least one year shall be left out of account for the purposes of this section ; and
- (ii) where the person in question ceased to be a civil servant before attaining the retiring age, no account shall be taken for any of the purposes of this section (including the purposes of paragraph (i) of this proviso) of any service in an unestablished capacity before he attains the age which would have been the retiring age for him if he had continued in the employment in which he was when he was last a civil servant.

The reference in this subsection to the cessation of a person's service in an unestablished capacity includes a reference to the cessation thereof by reason of his death.

(2) The said allowances shall be computed—

- (a) upon the amount of salary and emoluments upon which they would have fallen to be computed if the service in an unestablished capacity had been service in an established capacity and the salary and emoluments of the service in an unestablished capacity had fallen to be taken into account accordingly ; or
- (b) upon the amount upon which they would have fallen to be computed apart from this section,

whichever is the higher.

PART III
—cont.

(3) For each completed year, not exceeding five, of continuous service in an unestablished capacity—

- (a) the superannuation allowance may be increased by one-eightieth, or, if section one of the Superannuation Act, 1909, does not apply, one-sixtieth, of the higher of the amounts mentioned in subsection (2) of this section; and
- (b) the additional allowance, if any, may be increased by three-eightieths, or, if section four of the Superannuation Act, 1935, does not apply, one-thirtieth, of the higher of those amounts.

(4) Notwithstanding anything in subsection (3) of the last preceding section, no year shall be taken into account thereunder which would make the number of years taken into account under that and the last preceding subsection exceed five in all.

(5) The enactments relating to the computation of reckonable service (other than section two of the Superannuation Act, 1946, which enables the service of certain late entrants to the civil service to be reckoned at eight-fifths of its actual length) shall apply to the computation of service for the purposes of the proviso to subsection (1) of this section, and of subsection (3) of this section, as if it were established service.

(6) The provisions of Parts I and II of this Act shall, in relation to persons to whom this section applies, have effect subject to the provisions of Part II of the Second Schedule to this Act.

(7) In the case of any person who is serving in an unestablished capacity at the passing of this Act, the continuous service in such a capacity which may be taken into account for the purposes of subsection (3) of this section shall include service before the passing of this Act.

(8) The provisions of this section shall apply, and shall be deemed always to have applied, to any person who had ceased to serve in an unestablished capacity before the passing of this Act but was serving in such a capacity on the third day of December, nineteen hundred and forty-eight, and any superannuation allowance or additional allowance granted to any such person before the passing of this Act may be increased accordingly.

(9) Where—

- (a) a person has ceased to be a civil servant before the passing of this Act; and
- (b) on ceasing to be a civil servant he re-entered the civil service of the State to serve therein in an unestablished capacity; and

(c) his service in an unestablished capacity followed immediately upon his service as a civil servant, and was in the post which he held when he was last a civil servant or in a similar post; and

(d) his reckonable service when he ceased to be a civil servant was not a complete number of years but included an odd part of a year,

the said odd part of a year shall be taken into account for the purposes of this section as if it were part of the service in an unestablished capacity.

PART III
—cont.

37. The proviso to subsection (2) of section one, and the proviso to subsection (1) of section two, of the Superannuation Act, 1909 (which provide for the reduction of additional allowances and death gratuities in the case of persons who continue to serve when they have attained the age of sixty-six) shall not have effect and shall be deemed never to have had effect in relation to any person ceasing to be a civil servant on or at any time after the third day of December, nineteen hundred and forty-eight, or to any person to whom the last preceding section applies, and allowances or gratuities granted before the passing of this Act may be increased accordingly.

Repeal of certain provisions as to death gratuities and additional allowances.

38.—(1) The Treasury may direct that, subject to such conditions as they may determine, section three of the Superannuation Act, 1935, and section three of the Superannuation Act, 1887 (which relate to the reckoning of unestablished service as service in the capacity of a civil servant) shall apply to a person who becomes a civil servant after having previously served the State in an unestablished capacity notwithstanding that there is an interval between the conclusion of his service in such a capacity and the time when he becomes a civil servant.

Reckoning of unestablished service.

(2) The preceding subsection shall apply to persons ceasing to be civil servants after the passing of this Act whether they became civil servants before or after the passing thereof.

(3) Section three of the Superannuation Act, 1935, shall have effect, in relation to any service in an unestablished capacity rendered after the passing of this Act, as if in subsection (1) thereof the words "as to one half of the period thereof" were omitted.

39.—(1) If, after the passing of this Act, a person employed in an unestablished capacity dies while still in his employment after having served continuously therein for not less than seven years, the Treasury may grant to his legal personal representatives a gratuity at the rate of one pound or one week's pay, whichever is the greater, for each year of his service in the employment.

Gratuities to unestablished persons.

PART III
—cont.

(2) If, after the passing of this Act, a person employed as aforesaid retires or is removed from his employment after having served continuously therein for not less than seven years, the Treasury may, on the recommendation of the head officer of the department, grant to him a gratuity at the rate of one pound or one week's pay, whichever is the greater, for each year of his service in the employment.

(3) If, after the passing of this Act, a civil servant who, before he was a civil servant, was employed in an unestablished capacity dies without having completed sufficient service for it to be possible that a gratuity should be paid in respect of him, his employment as a civil servant may be treated for the purposes of this section as if it were employment in an unestablished capacity.

(4) Paragraphs (a) and (b) of subsection (2) of section three of the Superannuation Act, 1935 (which enables the Treasury to direct that discontinuous periods of service in an unestablished capacity shall be taken into account for the purposes of that section in the manner therein specified) shall apply for the purposes of this section as they apply for the purposes of that section.

(5) Service taken into account for the purposes of section thirty-six of this Act shall not also be taken into account for the purposes of this section.

(6) Section four of the Superannuation Act, 1887, and section three of the Superannuation Act, 1914 (which provide for compassionate gratuities in the case of persons employed in an unestablished capacity) are hereby repealed.

Part-time
service.

40.—(1) The part-time service to which this section applies is part-time service (whether before or after the passing of this Act) in the civil service of the State where the person employed gives personal service of at least eighteen hours a week and the remuneration is defrayed entirely out of moneys provided by Parliament.

(2) Subject to the provisions of this subsection, subsections (1) to (4) of the last preceding section shall apply in relation to persons who die while employed in, or retire or are removed from, part-time service to which this section applies, or who, having become civil servants after having been employed in such part-time service as aforesaid, die while still civil servants, as if references in those subsections to employment or service in an unestablished capacity were references to employment or service in such part-time service as aforesaid:

Provided that—

PART III
—cont.

- (a) if the pay for the part-time service covers expenses, the rate thereof shall be treated for the purposes of this subsection as reduced to such extent as the Treasury may think fit;
- (b) if the pay for the part-time service is computed by reference to a weekly rate based on full-time service and varies according to the number of hours actually worked in the week, the rate thereof shall be taken for the purposes of this subsection to be one half of that weekly rate.

(3) Where a person, after being employed in part-time service to which this section applies, is employed, whether before or after the passing of this Act, in an unestablished capacity and, after the passing of this Act, he dies in, or retires or is removed from, his employment—

- (a) his employment in the part-time service to which this section applies may, for the purpose of determining whether a gratuity may be granted under the last preceding section in respect of the service in an unestablished capacity (but not for the purpose of determining the amount of that gratuity), be taken into account as if it were employment in an unestablished capacity; and
- (b) where, whether by virtue of paragraph (a) of this subsection or otherwise, a gratuity falls to be granted under the last preceding section to or in respect of him, a gratuity may also be granted under that section, as applied by subsection (2) of this section, in respect of his said part-time service, notwithstanding that he has not served therein for the minimum period required by that section as so applied.

(4) Where a person, before being employed in part-time service to which this section applies, is employed, whether before or after the passing of this Act, in an unestablished capacity, and, after the passing of this Act, he dies in, or retires or is removed from, his employment—

- (a) his employment in the unestablished capacity may, for the purpose of determining whether a gratuity may be granted under the last preceding section, as applied by subsection (2) of this section, in respect of the part-time service (but not for the purpose of determining the amount of that gratuity) be taken into account as if it were employment in the part-time service; and
- (b) where, whether by virtue of paragraph (a) of this subsection or otherwise, a gratuity falls to be granted to or in respect of him under the last preceding section as

PART III
—*cont.*

so applied, a gratuity may also be granted under that section in respect of his service in an unestablished capacity, notwithstanding that he has not served therein for the minimum period required by that section.

(5) Where either of the following conditions is satisfied in relation to a person who at the time of the passing of this Act or at any time thereafter is a civil servant, that is to say—

- (a) that, when he became a civil servant, he was serving in part-time service to which this section applies which would, in the opinion of the Treasury have fallen to be treated as reckonable service, whether as to the whole or as to one half thereof, if it had been whole-time service ; or
- (b) that he became a civil servant after serving in an unestablished capacity in such circumstances that all or some of his service in an unestablished capacity falls to be treated as reckonable service, either as to the whole or as to one half thereof, and was serving in such part-time service as aforesaid when his service in an unestablished capacity began,

his continuous service in such part-time service as aforesaid immediately before he became a civil servant or, as the case may be, immediately before he began to serve in an unestablished capacity, except so much thereof as took place before he attained the age of eighteen years, shall, as to one half or, if and so far as that service took place before the passing of this Act, one quarter of the period thereof, be reckoned for all the purposes of the Superannuation Acts as service as a civil servant :

Provided that the Treasury may direct—

- (i) that, subject to such conditions as they may determine, the service of any person in part-time service to which this section applies for two or more periods shall, for the purpose of determining whether or not such service by him is to be reckoned as aforesaid, be treated as if it were continuous service beginning at the commencement of the first of those periods or of such one of them as the Treasury may determine ;
- (ii) that, subject as aforesaid, discontinuous periods of such part-time service as aforesaid shall be aggregated for the purpose of computing the service to be reckoned as aforesaid ; and
- (iii) that, subject as aforesaid, this subsection shall apply to a person who had part-time service to which this section applies notwithstanding that there is an interval between the conclusion of his part-time service and the beginning of his service as a civil servant or of his service in an unestablished capacity, as the case may be.

41.—(1) Where, after the passing of this Act, a person who is a civil servant, or, not being a civil servant, is employed in a civil capacity for the purposes of His Majesty's Government in the United Kingdom, whether temporarily or permanently and whether for reward or not, either—

PART III
—cont.

Gratuities and allowances to civil servants and others injured or contracting diseases in the discharge of their duties.

- (a) is injured in the actual discharge of his duty by some injury specifically attributable to the nature of his duty which is not wholly or mainly due to, or seriously aggravated by, his own serious and culpable negligence or misconduct; or
- (b) contracts a disease to which he is exposed by the nature of his duty, not being a disease wholly or mainly due to, or seriously aggravated by, his own serious and culpable negligence or misconduct,

the Treasury may grant to him, and, if, either immediately or within seven years from the time when he suffered the injury or contracted the disease, he dies as a direct result thereof, to all or any of the following persons, that is to say—

- (i) his widow;
- (ii) his mother, or, where his mother is dead, his father, if his mother, or, as the case may be, his father, is wholly or mainly dependent on him at the time of his death;
- (iii) his children; and
- (iv) where he has no children who are, under the terms of the warrant hereinafter mentioned, eligible for the grant of a gratuity or allowance under this section, any brother or sister of his who is wholly or mainly dependent on him at the time of his death,

such gratuity or annual allowance as the Treasury may consider reasonable, and as may be permitted by the terms of a warrant of the Treasury under this section.

(2) The reference in subsection (1) of this section to the widow of the person who is injured or contracts the disease shall, where that person is a female, be deemed to be a reference to her widowed husband if he is wholly or mainly dependent on her at the time of her death.

(3) Where the person who is injured or contracts the disease is a civil servant, any allowance granted under this section to him shall not, together with any superannuation allowance, and the annuity value of any additional allowance, for which he is otherwise eligible, exceed five-sixths of the annual salary and emoluments of his office.

In this subsection, the expression "annuity value" means, in relation to an additional allowance for which a person is eligible, the value thereof computed in accordance with the Tables for immediate life annuities framed under Part II of the Government Annuities Act, 1929, which are in force when he ceases to be a civil servant.

PART III
—cont.

Any reduction effected or to be effected in the amount of any additional allowance by way of contribution under Part I or Part II of this Act shall be left out of account for the purposes of this subsection and, accordingly, the annuity value of any additional allowance shall be determined as if no such reduction as aforesaid had been or had to be made.

(4) Where the person who is injured or contracts the disease is a civil servant whose service, as computed for the purposes of section two of the Superannuation Act, 1909 (which relates to death gratuities), is less than five years, and he dies as the direct result of the injury or disease, he shall be treated for the purposes of that section as if his service had amounted to five years.

(5) Where the person who is injured or contracts the disease is a person employed in an unestablished capacity whose continuous service therein as computed for the purposes of section thirty-nine of this Act is less than seven years, and he dies as the direct result of the injury or disease, his continuous service shall be treated for the purposes of that section as amounting to seven years.

(6) Where a civil servant recruited as such in the United Kingdom is employed outside the United Kingdom for the purposes of His Majesty's Government in the United Kingdom and suffers an aggravation of a disease from which he is already suffering, being an aggravation to which he is exposed by the nature of his duty outside the United Kingdom and which is not wholly or mainly due to his own serious and culpable negligence or misconduct, this section shall apply in relation to him as if, when he sustained the aggravation, he had contracted such a disease as is mentioned in paragraph (b) of subsection (1) thereof.

(7) A warrant under this section may be revoked or varied by a subsequent warrant of the Treasury thereunder.

(8) Any power to issue a warrant conferred by this section shall be exercisable by statutory instrument.

(9) Section one of the Superannuation Act, 1887, is hereby repealed and any warrants in force under that section at the date of the passing of this Act shall, until revoked, continue in force and be deemed to be warrants issued under this section.

Computation
of service and
reduction of
retiring age
where service
has been in
certain places
abroad.

42.—(1) This section shall apply in relation to such countries and places (being countries or places outside the United Kingdom) as the Treasury may by order specify (in this section referred to as "countries and places to which this section applies").

(2) Subject to the provisions of this section, in computing the amount of any superannuation allowance, additional allowance

or gratuity, each year of actual service in a country or place to which this section for the time being applies, either as a civil servant or in an unestablished capacity, shall be reckoned as service as a civil servant or service in an unestablished capacity, as the case may be, for one and a half years and so proportionately as regards parts of a year :

Provided that this subsection shall not apply to any service which would, apart from this subsection, fall to be reckoned for any of the purposes aforesaid at a rate greater than one and a half years for each year of actual service.

(3) Subject to the provisions of this section, for each completed year of actual service as a civil servant in countries or places to which this section for the time being applies, the age on retirement at which without a medical certificate a superannuation allowance or additional allowance may be granted apart from the provisions of section thirty-four of this Act shall be reduced by three months, so, however, that the said age shall not in any case be reduced below fifty-five years.

Service in an unestablished capacity in countries or places to which this section for the time being applies which could be taken into account in computing the amount of any superannuation allowance shall be taken into account under this subsection as if it were service as a civil servant.

(4) Nothing in this section shall, without the consent of the Treasury, apply to a person who was residing in a country or place to which this section for the time being applies when he first entered the civil service of the State.

(5) Nothing in this section shall affect the minimum period which it is requisite that a person should serve in order that a superannuation allowance, additional allowance or gratuity may become payable to or in respect of him.

(6) The Superannuation Act, 1876, is hereby repealed, but any order made thereunder declaring a country or place to be an unhealthy place shall be deemed for the purposes of this section to be an order under subsection (1) of this section specifying that country or place for the purposes of this section.

(7) Any order under this section may be revoked or varied by a subsequent order of the Treasury.

(8) An order under this section may, if in the special circumstances of the case it appears proper to the Treasury so to frame the order, be so framed as to apply this section to a country or place as from a date before that of the making of the order or of the passing of this Act, and where an order is so framed, references in this section to a country or place to which this section for the time being applies shall be construed accordingly.

PART III
—cont.

(9) The powers conferred by this section to make orders shall be exercisable by statutory instrument.

(10) This section—

- (a) so far as it affects superannuation allowances, additional allowances and gratuities other than gratuities under section thirty-nine of this Act, shall have effect, and be deemed always to have had effect, in relation to any person who serves as a civil servant at any time after the passing of this Act;
- (b) so far as it affects gratuities under the said section thirty-nine, shall have effect, and be deemed always to have had effect, in relation to any person who serves in an unestablished capacity at any time after the passing of this Act:

Provided that, for the purpose of the computations of service required to be made by sections thirty-five and thirty-six of this Act, this section shall have effect and be deemed always to have had effect in relation to every person to whom those sections respectively apply, whether or not he serves as a civil servant after the passing of this Act.

Computation
of service and
reduction of
retiring age
in the case of
certain prison
and other
employments.

43.—(1) This section applies to employment in prisons and other institutions to which the Prison Acts, 1865 to 1898, or the Prisons (Scotland) Acts, 1860 to 1926, apply, whether with or without modifications, being employment of any such classes as the Secretary of State may with the approval of the Treasury by order prescribe:

Provided that rules made under section two of the Superannuation (Miscellaneous Provisions) Act, 1948, may provide, in relation to persons who become civil servants after having been employed in another employment belonging to the classes of employment specified in subsection (2) of that section, that that other employment shall be treated as employment to which this section applies.

(2) Fifty-five years shall be substituted for sixty years as the age on retirement at which without a medical certificate a superannuation allowance or additional allowance may be granted apart from the provisions of section thirty-four of this Act to a civil servant who retires from employment to which this section applies.

(3) After twenty years of actual service, whether as a civil servant or in an unestablished capacity, in employment to which this section applies, each year of actual service in such employment shall be reckoned for the purpose of computing the amount of any superannuation allowance, additional allowance

or gratuity as two years of service as a civil servant or, as the case may be, of service in an unestablished capacity, and so proportionately as regards parts of a year.

PART III
—cont.

(4) The Superannuation (Prison Officers) Act, 1919, is hereby repealed, but any order or other instrument made or issued thereunder prescribing an employment for the purposes of that Act shall be deemed for the purposes of this section to be an order under subsection (1) of this section prescribing that employment for the purposes of this section.

This subsection applies to orders and instruments made or issued under the said Act in relation to employment in Broadmoor institutions or criminal lunatic asylums, or made or issued under section ten of the Superannuation Act, 1935, in relation to employment in institutions maintained by the Board of Control under sections twenty-five and thirty-five of the Mental Deficiency Act, 1913, and the provisions of subsection (1) of this section shall be extended accordingly.

(5) Any order made under this section may be revoked or varied by a subsequent order of the Secretary of State made with the approval of the Treasury.

(6) The powers conferred by this section to make orders shall be exerciseable by statutory instrument.

(7) This section shall have effect in relation to any person who serves in an employment to which this section applies at any time after the passing of this Act and, in relation to any such person, shall be deemed always to have had effect:

Provided that, for the purpose of the computations of service required to be made by sections thirty-five and thirty-six of this Act, this section shall have effect and be deemed always to have had effect in relation to every person to whom those sections respectively apply, whether or not he serves as a civil servant after the passing of this Act.

44.—(1) Where a person to whom this section applies had, before he became a civil servant, served in whole-time service in the armed forces of the Crown, the merchant navy or the mercantile marine at any time between the fourth day of August, nineteen hundred and fourteen and the thirty-first day of August, nineteen hundred and twenty-one, then if and so far as that service took place after the date on which he was declared successful in a competitive examination for persons desiring to become civil servants or, as the case may be, the date on which he was nominated by the head officer of a Government department for appointment to the civil service, it shall be reckoned for the purposes of the Superannuation Acts as if it had been service as a civil servant.

Counting of
certain war
service for
superannuation
purposes.

PART III
—cont.

(2) For the purposes of this section a person who became a civil servant more than three months after the date on which he was declared or nominated as mentioned in the preceding subsection shall be deemed to have served in whole-time service in the armed forces of the Crown, the merchant navy or the mercantile marine during the whole of the period between that date and the date on which he became a civil servant, unless the contrary appears.

(3) This section shall apply and shall be deemed always to have applied to persons who are civil servants at the date of the passing of this Act and to persons who retired from the civil service before that date and are living at the passing of this Act, and superannuation allowances and additional allowances granted before the passing of this Act may be increased accordingly; but nothing in this subsection shall authorise the payment, in respect of any period before the date of the passing of this Act, of any increase in the superannuation allowance of a person who retired from the civil service before that date.

PART IV

MISCELLANEOUS AND GENERAL

Supplemental provisions as to Parts I and II

Duty of civil servants to give information.

45. It is hereby declared that it is the duty of every person who is or has been a civil servant to give to the Treasury or other proper authority all such information as is necessary for the proper operation of Parts I and II of this Act in relation to him, whether he is asked to give the information or not.

Meaning of "period of childhood and full-time education" for the purposes of Parts I and II.

46.—(1) Subject to the provisions of subsection (4) of this section, a person shall be deemed for the purposes of Parts I and II of this Act to be in his period of childhood and full-time education while either—

- (a) he is under the age of sixteen; or
- (b) he is receiving full-time instruction at any university, college, school or other educational establishment; or
- (c) he is undergoing training by any person (hereinafter referred to as "the employer") for any trade, profession or vocation in such circumstances that—

(i) he is required to devote the whole of his time to the training for a period of not less than two years; and

(ii) while he is undergoing the training, the emoluments receivable by him, or payable by the employer in respect of him, do not exceed thirteen pounds a year, exclusive of any emoluments receivable or payable by way of return of any premium paid in respect of the training:

Provided that a person shall not be deemed for the purposes of this section to satisfy the condition specified in paragraph (b) or the condition specified in paragraph (c) of this subsection unless there has up till then been no time since he attained the age of sixteen when he did not satisfy one or other of those conditions.

PART IV
—cont.

(2) In subsection (1) of this section, the expression “ emoluments ” means any salary, fees, wages, perquisites, or profits or gains whatsoever, and includes the value of free board, lodging or clothing, and, for the purposes of sub-paragraph (ii) of paragraph (c) of the said subsection (1), where a premium has been paid in respect of the training of a person, all emoluments at any time receivable by him, or payable by the employer in respect of him, shall be deemed to be receivable or payable by way of return of the premium, unless and except to the extent that the amount thereof exceeds in the aggregate the amount of the premium.

(3) As respects any period during which neither of the conditions specified in paragraphs (b) and (c) of subsection (1) of this section is satisfied in relation to a person, the Treasury may, if they think fit and are satisfied that that person's full-time education ought not to be regarded as completed, direct either—

(a) that that period shall be ignored for the purposes of the proviso to subsection (1) of this section ; or

(b) that that period shall be so ignored and shall also be treated as part of his period of childhood and full-time education for all the other purposes of Parts I and II of this Act, except such purposes, if any, as may be specified in the direction.

(4) Notwithstanding anything in the preceding provisions of this section, the period of childhood and full-time education shall not, in the case of a person who is permanently incapacitated, be deemed for any of the purposes of Parts I and II of this Act to continue after he attains the age of sixteen or his permanent incapacity becomes known, whichever is the later.

47. Where a civil servant marries and—

(a) he dies within the year beginning with the date of the marriage ; and

(b) there are no children born of the marriage ; and

(c) the Treasury are of the opinion that his death within the year beginning with the date of the marriage was, at that date, to be foreseen by him,

Marriages of
civil servants
whose early
death is to be
foreseen.

the same results shall follow under Parts I and II of this Act as would have followed if the marriage had not taken place, and all necessary adjustments (including, if need be, repayments of sums paid in respect of pensions already granted under the said

PART IV
—cont.

Part I, repayments of contributions made under the said Part I and grants of additional pensions and payments of additional contributions under the said Part II) shall be made accordingly.

Application of
Pensions
(Increase) Acts,
Lunacy Act,
1890,
Forfeiture Act,
1870, etc.

48.—(1) The following provisions of the Pensions (Increase) Act, 1947, that is to say—

- (a) subsection (2) of section three (which prevents a pension being increased where the amount of the pension is determined by reference to a rate of emoluments received on or after the first day of April, nineteen hundred and forty-seven, or by reference to an average rate of emolument received over a period of service beginning on or after the first day of April, nineteen hundred and forty-six) ;
- (b) subsection (3) of the said section three (which requires any increase of pension to be reduced where the amount of the pension is determined by reference to an average rate of emoluments received over a period of service beginning before the first day of April, nineteen hundred and forty-six, but ending after that date),

shall not apply to a superannuation allowance computed upon the amount mentioned in paragraph (a) of subsection (2) of section thirty-six of this Act unless they would have applied thereto had it been computed upon the amount mentioned in paragraph (b) thereof.

(2) Where subsection (3) of section three of the Pensions (Increase) Act, 1947 (as modified by the preceding subsection) applies to a superannuation allowance computed upon the amount mentioned in paragraph (a) of subsection (2) of section thirty-six of this Act, the period of service by reference to which the amount mentioned in the said paragraph (a) is determined shall be deemed for the purposes of the said subsection (3) to have begun and ended on the same dates as the period of service which would have been relevant if the superannuation allowance had been computed upon the amount mentioned in paragraph (b) of subsection (2) of the said section thirty-six.

(3) Notwithstanding anything in subsection (2) of section three of the Pensions (Increase) Act, 1944 (which requires increases otherwise payable under that Act to be withheld or reduced in the case of pensions increased in consequence of war bonus or similar payments) a superannuation allowance computed upon the amount mentioned in paragraph (a) of subsection (2) of section thirty-six of this Act may be increased under the Pensions (Increase) Acts, 1944 and 1947, to an amount not exceeding the amount to which that allowance could have been increased in accordance with the provisions of those Acts and subsection (3)

of section sixty-two of this Act, if it had been computed upon the amount mentioned in paragraph (b) of subsection (2) of the said section thirty-six.

PART IV
—cont.

(4) The Pensions (Increase) Acts, 1944 and 1947, shall not apply to any pension under Part I or Part II of this Act and the amount of any such pension shall be calculated without regard to any increase made or falling to be made under those Acts in any superannuation or other allowance.

(5) Section two of the Forfeiture Act, 1870 (which provides for forfeiture of pensions in certain cases of conviction for treason or felony) and section three hundred and thirty-five of the Lunacy Act, 1890, and subsection (1) of section seven of the Superannuation Act, 1887 (which relate to pensions payable to persons of unsound mind), shall apply in relation to a pension or part of a pension under Part I or Part II of this Act which is applied for the benefit of any person as if that pension or part of a pension, as the case may be, were a pension paid to that person:

Provided that where part only of a pension under the said Part I or the said Part II is applied for the benefit of the person in question, the said section two shall have effect as if, instead of providing that the pension should determine and cease to be payable, it had provided that that pension could not enure for his benefit.

49. Relief from income tax shall not be allowed to any person under section thirty-two of the Income Tax Act, 1918 (which provides relief for, amongst other things, contributions to secure deferred annuities to widows and provision for children) or under any other provision of the Income Tax Acts providing for relief for income tax purposes, in respect of any contributions made by him under Part I or Part II of this Act.

Contributions
not to qualify
for Income
Tax relief.

50.—(1) Any election or nomination required or authorised to be made under Part I or Part II of this Act, and any notice required or authorised to be given under Part I or Part II of this Act shall be in writing, shall be made or given to the Treasury or such other authority as the Treasury may appoint, shall be made or given in the lifetime of the person who makes or gives it and, unless that person has ceased to be a civil servant before the expiration of six months from the passing of this Act, shall, except so far as is otherwise expressly provided, be made or given before he ceases to be a civil servant.

Mode of
making
elections, etc.

(2) Where any person by whom, under section eleven or section twenty-nine of this Act, an election or nomination may be made within six months after the passing of this Act is of unsound mind, the Treasury may direct that the said six months shall be extended for such period as may be necessary to enable the election or nomination to be made on his behalf.

PART IV
—cont.

Effect under
Parts I and
II of certain
nullity
decrees.

51. Where a marriage which is voidable but not void from the beginning is declared to be null by any court of competent jurisdiction, the same results shall follow under Parts I and II of this Act as would have followed thereunder if the marriage had not been voidable and had been dissolved at the date of the declaration of nullity.

Provisions as to certain special classes of case

Application to
cases falling
within the
Superannua-
tion (Various
Services) Act,
1938.

52.—(1) For the avoidance of doubt, it is hereby declared that the power conferred on the appropriate authority by section one of the Superannuation (Various Services) Act, 1938, to grant superannuation benefits extends—

(a) to the grant in respect of service before the passing of this Act of benefits payable under this Act in respect of such service ; and

(b) to the grants of pensions under Parts I and II of this Act to widows, widowers, children and dependants ; and the provisions of this Act, including the provisions thereof relating to income tax, shall, with any necessary adaptations, apply accordingly.

(2) Where, by virtue of subsection (3) of the said section one the said power is required to be exercised under a scheme approved by the Treasury or in accordance with regulations, any such scheme or regulations made after the passing of this Act may, so far as the provisions of the scheme or regulations correspond with the provisions of this Act, be made so as to take effect from such date, not being earlier than the passing of this Act, as may be specified in the scheme or regulations.

Application to
employees of
Cable and
Wireless, etc.

53. Section six of the Commonwealth Telegraphs Act, 1949 (which enables the Postmaster General to make regulations with respect to the pension rights of employees of Cable and Wireless Limited who enter the civil service of the State) shall have effect as if the references in paragraph (d) of subsection (2) of that section to the Superannuation Acts, 1834 to 1946, included references to this Act.

Application of
Act to persons
holding
successive
offices or
transferring to
approved
employment.

54.—(1) This Act shall, in relation to persons who, whether before or after they are civil servants, serve in the permanent civil service of a colony or of the Isle of Man, or in a public office (not in the civil service of the State) to which the rules made under section one of the Superannuation Act, 1892, apply or as members of a police force within the meaning of the Police Pensions Act, 1948, or in service by virtue of which they are deemed for the purposes of that Act to be members of such a force, or who, having been civil servants, become Governors within the meaning of the Pensions (Governors of Dominions, etc.) Acts, 1911 to 1947, have effect subject to such adaptations

and modifications as may be prescribed by rules made by the Treasury ; and where rules are made under this subsection, they may contain provisions modifying, in relation to the persons affected by the rules, any other enactment relating to the pensions and other benefits payable to or in respect of them.

PART IV
—cont.

(2) This Act shall, in relation to persons who, having ceased to be civil servants, are employed in approved employment as defined in section four of the Superannuation Act, 1914, have effect subject to such adaptations and modifications as may be prescribed by rules made by the Treasury, and rules made under this subsection may contain such provisions for modifying the provisions of the Superannuation Acts, 1834 to 1946, relating to approved employment as appear to the Treasury to be equitable having regard to the provisions of this Act as modified by the rules.

(3) The powers conferred by this section to make rules shall be exercisable by statutory instrument.

55. The application of this Act in relation to civil servants who have served on the permanent establishment of the Secretary of State in Council of India shall not be affected by anything in subsection (1) of section two hundred and eighty-two of the Government of India Act, 1935 (which provides that part of any superannuation and other allowances or gratuities awarded to such persons shall be paid out of the revenues of the Federation of India), and the said subsection (1) shall operate in relation to them as if this Act had not been passed and the allowances and gratuities payable to or in respect of them had been computed and granted accordingly.

Application of
Act to persons
who have
served on the
establishment
of the
Secretary of
State in
Council of
India.

56.—(1) Section two of the Superannuation Act, 1935 (which relates to the allocation of superannuation benefits to dependants) and the rules made thereunder shall, in relation to existing Irish officers retiring or removed on or after the third day of December, nineteen hundred and forty-eight, have effect and be deemed always to have had effect as if any annual compensation allowance granted under the Eighth Schedule to the Government of Ireland Act, 1920, were a superannuation allowance granted under the Superannuation Acts.

Provisions as
to existing Irish
officers.

(2) Section four of the Superannuation Act, 1935 (which relates to the averaging of salary, etc.) shall apply to any allowance granted after the commencement of this Act to an existing Irish officer under the Eighth Schedule to the Government of Ireland Act, 1920, as it applies to an allowance granted under the Superannuation Acts.

(3) His Majesty may, by an Order in Council made in pursuance of a Resolution passed by both Houses of Parliament of Northern Ireland, direct that all or any of the provisions of this

PART IV
—cont.

Act, other than this section, shall, subject to such exceptions and adaptations as may be specified in the Order, apply to existing Irish officers to whom the Superannuation Acts, 1834 to 1914, apply by virtue of subsection (2) of section fifty-five of the Government of Ireland Act, 1920.

(4) The power conferred by subsection (3) of this section extends to the application of all or any of the provisions of this Act to the case of existing Irish officers to whom compensation falls to be granted under the Eighth Schedule to the Government of Ireland Act, 1920, and the adaptations subject to which those provisions may be so applied may include the insertion of provisions modifying the said Eighth Schedule so far as appears necessary or expedient for the purposes of the Order.

(5) Save as aforesaid, the provisions of this Act other than this section shall not apply to any existing Irish officers.

(6) In this section the expression "existing Irish officers" has the same meaning as in the Government of Ireland Act, 1920.

Age-barred
officers.

57. The provisions of this Act shall, with any necessary adaptations, apply in relation to any person who—

- (a) when serving in an unestablished capacity was refused appointment as a civil servant on the ground that by reason of his age he would not, if appointed a civil servant, have become eligible to receive a superannuation allowance on retirement at the retiring age; and
- (b) is, under sub-paragraph (2) of paragraph 3 of the Second Schedule to the Superannuation Act, 1946, treated as eligible for such superannuation benefits as are there mentioned,

as if he had become a civil servant at the time of the refusal and had remained a civil servant until the conclusion of his service in an unestablished capacity.

Application of
this Act to
compensation
and retiring
allowances.

58.—(1) Parts I and II, and sections thirty-two, thirty-three, forty-two, forty-three and forty-four of this Act shall, so far as capable of such application, apply in relation to compensation allowances and retiring allowances as if references therein to superannuation allowances included references to any annual compensation or retiring allowance and references therein to additional allowances included references to any compensation or retiring allowance taking the form of a lump sum.

(2) In this section the expression "compensation allowance" means an allowance under section six of the Superannuation Act, 1909, or section seven of the Superannuation Act, 1859 (which relate to compensation for abolition of office), and the expression "retiring allowance" means an allowance under section two of the Superannuation Act, 1887 (which relates to persons removed for inefficiency).

*General*PART IV
—cont.

59. The Treasury may treat a person for all or any of the purposes of this Act as wholly or mainly dependent on another person notwithstanding that for the time being he is not in fact so dependent on him, if they are satisfied that it is reasonable to expect that the first-mentioned person will again become dependent upon the second-mentioned person and are further satisfied that the break in the dependence ought in all the circumstances to be regarded as a temporary one.

Power to ignore breaks in dependence.

60. Where any provision of this Act declares that a power conferred by that provision shall be exercisable by statutory instrument, any statutory instrument made in the exercise of that power shall be subject to annulment in pursuance of a resolution of either House of Parliament.

Statutory instruments to be subject to annulment.

61. The Treasury may, to such extent and subject to such conditions as they think fit, delegate to any Minister or officer of the Crown—

Power of Treasury to delegate power to grant allowances, etc.

(a) any power conferred on them by the Superannuation Acts to grant any allowance or gratuity; and

(b) any functions exercisable by them under any provision of this Act relating to pensions or contributions under Parts I and II thereof,

and references in this Act to the Treasury shall be construed accordingly.

62.—(1) There shall be paid out of moneys provided by Parliament—

Financial provisions.

(a) any pension, allowance, gratuity or return of contributions, with or without interest, which is payable under or by virtue of any of the provisions of this Act and does not fall to be paid from some other fund; and

(b) any increase attributable to any of the provisions of this Act in the sums which, under any other Act, are payable out of moneys so provided; and

(c) any administrative expenses incurred by any Government department attributable to the passing of this Act.

(2) Contributions under Parts I and II of this Act, except so far as they take the form of a reduction of an allowance or gratuity or fall to be paid into some other fund, shall be paid into the Exchequer.

(3) Nothing in this Act shall be construed as authorising any greater amount being paid in any case under the Pensions (Increase) Acts, 1920 and 1924, or the Pensions (Increase) Acts, 1944 and 1947, than would have fallen to be paid in that case if this Act had not been passed.

PART IV
—cont.
Interpretation.

63.—(1) In this Act, except so far as is otherwise expressly provided or the context otherwise requires, the following expressions have the meanings hereby respectively assigned to them, that is to say—

- “additional allowance” means an allowance granted under subsection (2) of section one of the Superannuation Act, 1909, either as originally enacted or as amended by any subsequent Act;
- “brother” includes, in relation to a person, every male child of his father or his mother;
- “child”, in relation to a person, includes an illegitimate child, a stepchild and an adopted child;
- “employment in an unestablished capacity” has the same meaning as in section three of the Superannuation Act, 1935, that is to say employment in the civil service of the State otherwise than in the capacity of a civil servant, being employment to which the person serving therein is required to devote his whole time and the remuneration for which is paid entirely out of moneys provided by Parliament;
- “father” includes, in relation to a person, his stepfather and a male person by whom he has been adopted;
- “gratuity” means a gratuity granted under any provision of the Superannuation Acts;
- “medical certificate”, in relation to the retirement of any person, means a medical certificate to the satisfaction of the Treasury that that person is incapable from infirmity of mind or body to discharge the duties of his situation and that that infirmity is likely to be permanent;
- “mother” includes, in relation to a person, his stepmother and a female person by whom he has been adopted;
- “presumptively eligible for a life pension”, in relation to a person, means nominated under Part II of this Act after his period of childhood and full-time education or under a nomination which states that he is permanently incapacitated;
- “reckonable service” means service as computed in accordance with the enactments (including enactments contained in this Act) relating to the computation of service for the purpose of determining the amount of a superannuation allowance or additional allowance;
- “retiring age” means, in relation to a civil servant, the age which a civil servant, in accordance with section ten of the Superannuation Act, 1859, as amended by any other enactment, including any provision of this

Act, must, apart from section thirty-four of this Act, attain in order that a superannuation allowance may be granted to him on retirement without a medical certificate ;

“ sister ” includes, in relation to a person, every female child of his father or his mother ;

“ superannuation allowance ” means an allowance under section two of the Superannuation Act, 1859, either as originally enacted or as amended by any subsequent Act and does not include an allowance under the Third Schedule to the Supreme Court of Judicature (Consolidation) Act, 1925, under Part II of the First Schedule to the County Courts Act, 1934, or under the First Schedule to the County Courts Act, 1924.

“ the Superannuation Acts ” means the Superannuation Acts, 1834 to 1946, and this Act.

(2) In this Act, the expression “ civil servant ” means a person serving in an established capacity in the permanent civil service of the State who holds his appointment directly from the Crown or has been admitted into the civil service with a certificate from the Civil Service Commissioners and references in this Act to persons ceasing to be civil servants, to persons retiring from being civil servants and to retired civil servants shall be construed accordingly :

Provided that, without prejudice to the operation of the enactments hereinafter mentioned as to the computation of the service of any person for any of the purposes of the Superannuation Acts, so much of the Pensions (Colonial Service) Act, 1887 or of the Pensions (Governors of Dominions, etc.) Acts, 1911 to 1947, as requires service in the permanent civil service of a colony, or service as a Governor within the meaning of the last-mentioned Acts, to be treated as service in the permanent civil service of the State shall not apply to this subsection.

(3) Any reference in this Act to a person ceasing to be a civil servant includes a reference to the death of a person who dies while he is a civil servant.

(4) Any reference in this Act to an adopted child of a person shall be construed as a reference to a child adopted by him (whether alone or jointly with any other person) in pursuance of an adoption order made under the Adoption of Children Act, 1926, or the Adoption of Children (Scotland) Act, 1930, or any corresponding enactment of the Parliament of Northern Ireland, or adopted by him (whether alone or jointly with any other person) in accordance with the law of the place where he was

PART IV
—cont.

domiciled at the time of the adoption, and references to a person by whom another person has been adopted shall be construed accordingly.

(5) In this Act, the expression “incapacitated” means, in relation to a person, incapable by reason of old age or some specific bodily or mental disability of earning his own living, and a person who is in any event too young to earn his own living shall be treated as incapacitated for the purposes of this Act if it appears that, by reason of any specific bodily or mental disability, he will be incapable of earning his own living when he attains the age at which he would otherwise be capable of doing so.

(6) The amendments and repeals effected by this Act in the Superannuation Acts, 1834 to 1946, shall not, except so far as is expressly provided in this Act, be construed as affecting those Acts in so far as they are applied by any enactment to persons not in the civil service of the State, but, save as aforesaid, any reference in this Act to any enactment shall, except so far as the context otherwise requires, be construed as a reference to that enactment as amended or extended by or under any other enactment, including this Act.

Short title,
citation
and repeal.

64.—(1) This Act may be cited as the Superannuation Act, 1949, and the Superannuation Acts, 1834 to 1946, and this Act may be cited together as the Superannuation Acts, 1834 to 1949.

(2) The enactments mentioned in the Third Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

SCHEDULES

FIRST SCHEDULE

PROVISIONS RELATING TO INCAPACITATED PERSONS

PART I

Children's Pensions

1. Where a person for whose benefit, if he were still in his period of childhood and full-time education, a children's pension could enure under Part I of this Act in respect of the service of any deceased person is for the time being incapacitated by an incapacity which arose or first arose during that period, then, subject as hereinafter provided, a children's pension may enure for the benefit of that person notwithstanding that he is no longer in his period of childhood and full-time education:

Provided that this paragraph shall not apply where the incapacity is a permanent one which arose before the deceased ceased to be a civil servant, and the deceased, before he ceased to be a civil servant, knew or might reasonably be expected to have known that it had arisen and was permanent.

2. If in any case to which subsection (2) of section five of this Act applies a children's pension can enure for the benefit of any person by virtue only of the preceding paragraph, then, whether or not that pension can also enure for the benefit of any other person or persons, the annual rate thereof may amount to one-third of the rate of the superannuation allowance of the deceased or to twenty-six pounds per annum, whichever is the higher.

1ST SCH.
—cont.

PART II

Dependants' Pensions

3. A life pension may be granted under section seventeen of this Act to a nominee who is nominated before the end of the period of his childhood and full-time education, if the nomination states that he is permanently incapacitated; but a life pension shall not be granted to such a nominee by virtue of this paragraph until the end of his period of childhood and full-time education.

4. Notwithstanding anything in section eighteen of this Act, a pension of limited duration shall be capable of ensuring for the benefit of a nominee after the end of his period of childhood and full-time education (not being a nominee who is presumptively eligible for a life pension) so long as he is for the time being incapacitated by an incapacity which arose or first arose during that period:

Provided that this paragraph shall not apply where the incapacity is a permanent one which arose before the nominator ceased to be a civil servant, and the nominator, before he ceased to be a civil servant, knew or might reasonably have been expected to have known that it had arisen and was permanent.

5. The annual rate of any such pension as is mentioned in the preceding paragraph may, whether or not it can also enure for the benefit of any other person or persons, amount to one-third of the rate of the superannuation allowance of the deceased or to twenty-six pounds per annum, whichever is the higher.

6. Sub-paragraph (iii) of paragraph (b) of subsection (2) of section twenty of this Act, and paragraph (c) of subsection (4) of section twenty-two of this Act, shall not apply to the contributions payable in respect of a nomination by virtue of which the nominee is presumptively eligible for a life pension.

7. Notwithstanding anything in section twenty-four or section twenty-five of this Act, a nominator may have one nominee who is his child and is presumptively eligible for a life pension and may have that nominee in addition to the number of nominees allowed under the said section twenty-four.

8. A nomination in force immediately before paragraph (b) of subsection (1) of section twenty-five of this Act became applicable to the nominator shall not be invalidated by reason only of that paragraph, if the nominee was then known to the nominator to be permanently incapacitated and was presumptively eligible for a life pension.

1ST SCH.
—cont.

9. A nomination by virtue of which the nominee is presumptively eligible for a life pension shall not become void by virtue of subsection (5) of section twenty-six of this Act at the end of the nominee's period of childhood and full-time education; and for the purpose of determining whether a person not presumptively eligible for a life pension is eligible for a pension of limited duration by virtue of paragraph 4 of this Schedule, the said subsection (5) shall be deemed not to have applied to the nomination.

Sections
35 and 36.

SECOND SCHEDULE

MODIFICATIONS OF PARTS I AND II IN RELATION TO PERSONS TO WHOM
SS. 35 AND 36 APPLY

PART I

Persons Serving after Retiring Age and 40 Years' Reckonable Service

1. Where any person to whom section thirty-five of this Act applies ceases to be a civil servant after making periodical contributions under section seven or section twenty of this Act, the period in respect of which contributions may be returned to him by virtue of paragraph (b) of subsection (2) of section eight or paragraph (b) of subsection (2) of section twenty-one of this Act respectively shall be reduced by the number of years of reckonable service which are taken into account under subsection (3) of the said section thirty-five or would be so taken into account but for the provisions of subsection (4) of section thirty-six of this Act.

2. For the purpose of computing any contribution to be made under section nine or section twenty-two of this Act in respect of a person to whom section thirty-five of this Act applies there shall be taken into account (notwithstanding anything in subsection (5) of the said section nine or subsection (5) of the said section twenty-two) any year of reckonable service which is taken into account for the purposes of subsection (3) of the said section thirty-five or which would be so taken into account but for the provisions of subsection (4) of section thirty-six of this Act.

3. Where any superannuation allowance or additional allowance granted to a person to whom section thirty-five of this Act applies is computed upon the amount specified in paragraph (a) of subsection (2) of that section, any contribution to be made in respect of that person under subsection (3) of section nine of this Act or subsection (3) of section twenty-two of this Act shall be ascertained by reference to that amount instead of by reference to the average annual amount of the salary and emoluments of his office during the last three years of his service.

PART II

Persons Serving in Unestablished Employment after Retirement

4. Where any person to whom section thirty-six of this Act applies had a wife when he ceased to be a civil servant then, in computing any contribution to be made in respect of him under section nine of this Act, any year of continuous unestablished service which is taken into account for the purposes of subsection (3) of the said

section thirty-six, being a year throughout which his wife is living, shall be added to the number of relevant years as ascertained in accordance with subsections (4) and (5) of the said section nine:

2ND SCH.
—cont.

Provided that the years added by virtue of this paragraph together with the years taken into account by virtue of paragraph 2 of this Schedule shall not exceed five in all.

5. For the purpose of computing any contribution to be made under section twenty-two of this Act in respect of a person to whom section thirty-six of this Act applies, any year of continuous unestablished service which is taken into account for the purposes of subsection (3) of the said section thirty-six, being a year throughout which a nomination made by that person under Part II of this Act is in force, shall be added to the number of relevant years as ascertained in accordance with subsections (4) and (5) of the said section twenty-two:

Provided that the years added by virtue of this paragraph together with the years taken into account by virtue of paragraph 2 of this Schedule shall not exceed five in all.

6. Where any superannuation allowance or additional allowance granted to a person to whom section thirty-six of this Act applies is computed upon the amount specified in paragraph (a) of subsection (2) of that section, any contribution to be made in respect of that person under subsection (3) of section nine or subsection (3) of section twenty-two of this Act shall be ascertained by reference to that amount instead of by reference to the average annual amount of the salary and emoluments of his office during the last three years of his service as a civil servant.

7. Subject to the provisions of the next following paragraph, the amount of any increase attributable to the provisions of this Part of this Schedule in the contribution payable in respect of any person under Part I or Part II of this Act shall take the form of a reduction of the increase in the additional allowance which would otherwise be granted to that person by virtue of section thirty-six of this Act; and so much of section eleven or section twenty-nine of this Act as requires the amount of any such contribution to be paid within twelve months of an election or nomination made thereunder, or renders such an election or nomination ineffective in default of such payment, shall not apply to any such increase as aforesaid.

8. Where any person in respect of whom contributions under Part I or Part II of this Act fall to be made by virtue of subsection (2) of section eleven or subsection (2) of section twenty-nine of this Act is a person to whom sections one and two of the Superannuation Act, 1909, do not apply, any increase attributable to the provisions of this Part of this Schedule in any such contribution may be recovered from him by means of deductions from his salary and emoluments or pension of such amounts as the Treasury may from time to time determine.

9. In relation to a superannuation allowance which has been or may be increased under section thirty-six of this Act, the references in subsection (2) of section two and subsection (2) of section sixteen of this Act to the annual rate of the superannuation allowance shall be construed as references to the annual rate of that allowance as so increased.

Section 64.

THIRD SCHEDULE

ENACTMENTS REPEALED

Session and Chapter	Short Title	Extent of Repeal
39 & 40 Vict. c. 53.	The Superannuation Act, 1876.	The whole Act.
50 & 51 Vict. c. 67.	The Superannuation Act, 1887.	Sections one and four.
9 Edw. 7. c. 10.	The Superannuation Act, 1909.	In section one, the proviso to subsection (2). In section two, the proviso to subsection (1). Section five. Section three.
4 & 5 Geo. 5. c. 86.	The Superannuation Act, 1914.	The whole Act.
9 & 10 Geo. 5. c. 67.	The Superannuation (Prison Officers) Act, 1919.	In section five, subsection (2).
14 & 15 Geo. 5. c. 17.	The County Courts Act, 1924.	In section twenty-nine, subsection (2).
24 & 25 Geo. 5. c. 53.	The County Courts Act, 1934.	In section seven, in subsection (1), the words "and eleven". Section eleven.
25 & 26 Geo. 5. c. 23.	The Superannuation Act, 1935.	

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Superannuation Act, 1859	22 Vict. c. 26.
Diplomatic Salaries, &c. Act, 1869	32 & 33 Vict. c. 43.
Forfeiture Act, 1870	33 & 34 Vict. c. 23.
Superannuation Act, 1876	39 & 40 Vict. c. 53.
Pensions (Colonial Service) Act, 1887	50 & 51 Vict. c. 13.
Superannuation Act, 1887	50 & 51 Vict. c. 67.
Lunacy Act, 1890	53 & 54 Vict. c. 5.
Superannuation Act, 1892	55 & 56 Vict. c. 40.
Superannuation Act, 1909	9 Edw. 7. c. 10.
Mental Deficiency Act, 1913	3 & 4 Geo. 5. c. 28.
Superannuation Act, 1914	4 & 5 Geo. 5. c. 86.
Income Tax Act, 1918	8 & 9 Geo. 5. c. 40.
Superannuation (Prison Officers) Act, 1919	9 & 10 Geo. 5. c. 67.
Government of Ireland Act, 1920	10 & 11 Geo. 5. c. 67.
County Courts Act, 1924	14 & 15 Geo. 5. c. 17.
Supreme Court of Judicature (Consolidation) Act, 1925	15 & 16 Geo. 5. c. 49.
Adoption of Children Act, 1926	16 & 17 Geo. 5. c. 29.
Superannuation (Diplomatic Service) Act, 1929... ..	19 & 20 Geo. 5. c. 11.
Government Annuities Act, 1929... ..	19 & 20 Geo. 5. c. 29.
Adoption of Children (Scotland) Act, 1930	20 & 21 Geo. 5. c. 37.
County Courts Act, 1934	24 & 25 Geo. 5. c. 53.

Short Title	Session and Chapter
Superannuation Act, 1935	25 & 26 Geo. 5. c. 23.
Government of India Act, 1935	26 Geo. 5 & 1 Edw. 8. c. 2.
Superannuation (Various Services) Act, 1938 ...	1 & 2 Geo. 6. c. 13.
Pensions (Increase) Act, 1944	7 & 8 Geo. 6. c. 21.
Superannuation Act, 1946	9 & 10 Geo. 6. c. 60.
National Insurance Act, 1946	9 & 10 Geo. 6. c. 67.
Pensions (Increase) Act, 1947	10 & 11 Geo. 6. c. 7.
Police Pensions Act, 1948	11 & 12 Geo. 6. c. 24.
Superannuation (Miscellaneous Provisions) Act, 1948	11 & 12 Geo. 6. c. 33.
Commonwealth Telegraphs Act, 1949	12 & 13 Geo. 6. c. 39.

CHAPTER 45

An Act to provide for the administration by the Minister of Pensions of veterans' pensions and other sums payable under the law of the United States of America in respect of certain persons; and for purposes connected therewith. [14th July 1949.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) If, as respects any person resident in the United Kingdom (hereinafter referred to as "the beneficiary"), it is agreed between the Minister and the Administrator of Veterans' Affairs that the next following subsection shall apply in relation to payments by the Administrator in respect of the beneficiary, the following provisions shall have effect.

(2) During the period for which it is agreed that this subsection is to apply (hereinafter referred to as "the period of administration by the Minister"), the Minister shall receive the said payments and shall hold them upon trust to deal with them as follows, that is to say,—

(a) by paying them to, or applying them in such manner as the Minister may think expedient in the interests of, the beneficiary, or